

A New Framework for Understanding Consent in Tort Law

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by

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Abstract

Intentional torts such as battery, assault, and false imprisonment identify wrongful conduct that violates a person's rights by intentionally and unjustifiably intruding upon the person's autonomy, thereby causing physical harm, emotional harm, or dignitary offense. But when that person actually consents to such conduct, consent vitiates the wrong and justifiably precludes liability.

Yet consent is controversial and divisive. In the context of sexual conduct, consent provokes especially intense contemporary debate. In other contexts, too, disagreement abounds about the type of consent that is legally effective. Although the concept of consent in criminal law has been extensively explored, few scholars have thoroughly analyzed consent in tort law.

This article demonstrates that controversies about the proper content and scope of consent rest in part on a failure to appreciate the distinct doctrinal categories of consent that preclude tort liability. By distinguishing these categories and demonstrating their significance and interrelationship, this article permits a clearer articulation of the criteria for resolving the controversies and renders the controversies much more tractable.

The article identifies three different categories of consent that are independently sufficient to preclude tort liability, and also notes two additional categories that are highly problematic. The first category is *actual* consent, or willingness that an actor engage in otherwise tortious conduct. The second is *apparent* consent, which refers to cases in which the actor reasonably believes, perhaps mistakenly, that the plaintiff actually consents. The third category is *hypothetical or presumed* consent, a category that courts and scholars have rarely identified and explained, except in a narrow subcategory (the emergency doctrine). Here, even if the actor knows that the plaintiff does not actually consent (e.g., because the plaintiff is asleep or unconscious or merely surprised by the actor's conduct), the actor is sometimes justified in proceeding, so long as the actor has no reason to believe that the plaintiff would not have actually consented if the actor had requested such consent. A fourth possible category is *implied-in-law*

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or *constructive* consent, under which courts (in rare cases) preclude tort liability even if the plaintiff expresses objection to the actor's conduct. I argue that this category should be jettisoned entirely. And a fifth possible category, *implied* consent simpliciter, is too vague and indiscriminate to be useful.

This framework is applied to numerous concrete scenarios, many drawn from the recently adopted Restatement Third, Torts: Intentional Torts to Persons. A separate section applies the analysis to contemporary controversies about the proper scope of consent to sexual conduct, including the question whether the bright-line rules "NO means NO" and "only YES means YES" (or affirmative consent) should be adopted.

The article is both a descriptive account of the concepts that are explicit or implicit in tort cases, and a normative account of the categories of consent that are most useful and justifiable to employ, consistent with the role of consent in tort doctrine and theory.

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Volenti non fit injuria.¹ Consent works moral and legal magic: in Heidi Hurd's widely quoted words, "Consent turns a trespass into a dinner party; a battery into a handshake; a theft into a gift; an invasion of privacy into an intimate moment; a commercial appropriation of name and likeness into a biography."²

The doctrine of consent plays a critical role in tort law. Intentional-tort doctrines such as battery, assault, and false imprisonment³ identify wrongful conduct that violates a person's rights by intentionally and unjustifiably intruding upon his or her private domain of autonomy, thereby causing physical harm, emotional harm, or dignitary offense. But in the core case when a person actually consents to the actor's conduct, consent vitiates the wrong and justifiably precludes liability.

Such consent is empowering: the person thereby permits the actor to cross the boundaries of his or her domain of autonomy. The power to consent is indispensable in enlarging the realm of personal freedom, choice, and agency. It also greatly facilitates mutually beneficial relationships and transactions between people.

Consent is a significant dimension of moral and legal responsibility. It is also controversial and divisive. In the context of sexual conduct, consent provokes especially intense contemporary debate. But in other contexts, too, disagreement abounds. Is consent a subjective mental state or instead a communication? When, if ever, is it permissible to act in the absence of evidence that the other party is willing to permit the conduct? Is it ever coherent to assert that a person *impliedly* consents even though the person expressly *objects* to the conduct in question?

This article demonstrates that controversies about the proper content and scope of consent rest in part on a failure to appreciate the distinct doctrinal categories of consent that preclude tort liability. By distinguishing these categories and demonstrating their significance and interrelationship, this article permits a clearer articulation of the criteria for resolving the controversies. The controversies then become much more tractable.

The article identifies three different categories of consent that are independently sufficient to preclude tort liability, and also notes two additional categories that are highly problematic. The first section of the article addresses the first category, *actual* consent, or

¹ Black's Law Dictionary (10th ed. 2014) translates the phrase as follows: "Law Latin 'to a willing person it is not a wrong,' i.e., a person is not wronged by that to which he or she consents."

² Heidi Hurd, *The Moral Magic of Consent*, 2 *Legal Theory* 121, 123 (1996). For an argument that Hurd's examples are not simply illustrations of the normative force of consent, see Victor Tadros, *Wrongs and Crimes* 213-214 (Oxford 2016).

³ This article focuses on these three torts. However, similar conceptual and substantive problems arise when consent precludes liability for crimes and for other torts, such as invasion of privacy or trespass to land or chattels. See Mark Gergen, *Consent Across Private Law*, in *Interstitial Private Law* (S. Bray et al eds. Oxford 2024). This article also discusses a (rare) example of a person consenting to intentional infliction of emotional distress. See *Extreme Haunted House*, *infra*.

willingness that the actor engage in otherwise tortious conduct. Actual consent contains two subcategories, express and inferred actual consent. The next section argues that the category of *implied* consent simpliciter should be rejected because it embraces multiple dissimilar categories. The following section concerns the second category, *apparent* consent, which refers to cases in which the actor reasonably believes, perhaps mistakenly, that the plaintiff actually consents.

The next section discusses the third category, *hypothetical* or *presumed* consent, a category that courts and scholars have rarely identified and explained, except in a narrow subcategory (the emergency doctrine). Here, even if the actor knows that the plaintiff does not actually consent (e.g., because the plaintiff is asleep or unconscious or merely surprised by the actor's conduct), the actor is sometimes justified in proceeding in the absence of such consent, so long as the actor has no reason to believe that the plaintiff would not have actually consented if the actor had requested such consent. This is a surprisingly important category. Many standard examples of consent other than actual consent, such as a tap on the shoulder to get someone's attention, can only be explained by hypothetical or presumed consent.

The subsequent section analyzes *implied-in-law* or *constructive* consent, a highly attenuated category of consent, under which courts (in very rare cases) preclude tort liability even if the plaintiff expresses objection to the actor's conduct. I argue that that category should be jettisoned entirely.

A final substantive section applies the analysis of the prior sections to some contemporary controversies about the proper scope of consent to sexual conduct, including the question whether the bright-line rules "NO means NO" and "Only YES means YES" (affirmative consent) should be adopted. Although these issues have long been explored in the criminal law, courts in tort cases increasingly address them.

This article relies extensively on the consent provisions in the recently published Restatement Third, Torts: Intentional Torts to Persons. I was Chief Reporter to this project, and the framework defended in this article is incorporated within the Restatement. Accordingly, this article is both a defense of the approach taken in the Restatement, which should be helpful to judges and lawyers addressing consent issues in tort cases; and also an independent argument for this approach, which should be of interest to scholars who study tort law, other fields of private law, criminal law, and moral philosophy. The article is both a descriptive account of the concepts that are explicit or implicit in tort cases, and a normative account of the different categories of consent that are most useful and justifiable to employ, consistent with the role of consent in tort doctrine and theory.

Although the concept of consent in criminal law has been extensively explored, few scholars have thoroughly analyzed consent in tort law,⁴ a context that differs in important respects from criminal law.⁵

I. Actual consent

The gold standard of consent is actual consent—a person’s subjective willingness to permit the otherwise tortious conduct of an actor. Other types of consent exist and are legally sufficient, but they are of inferior metal: their justification depends on principles and policies other than the fundamental principle underlying actual consent, that no wrong is done to a person who permits otherwise tortious conduct to occur. The terminology “actual” consent is somewhat arbitrary, though it does make salient the contrast with apparent consent, discussed below.⁶ The crucial issue is the *content* of this conception of consent: willingness to permit, or acquiescence in, another’s otherwise wrongful conduct.

⁴ Some helpful general analyses of consent in tort law include Tom W. Bell, Graduated Consent in Contract and Tort Law: Toward a Theory of Justification, 61 Case W. Rsr. L. Rev. 17 (2010); W. Jonathan Cardi & Martha Chamallas, A Negligence Claim for Rape, 101 Texas L. Rev. 587 (2023); Martha Chamallas, Feminist legal theory in tort law, in Research handbook on feminist jurisprudence (Robin West & Cynthia Grant Bowman, eds., Elgar 2019); Martha Chamallas, Will Tort Law Have Its #Me Too Moment?, 11 J. Tort L. 39, 45 (2018); Martha Chamallas, The Elephant in the Room: Sidestepping the Affirmative Consent Debate in the Restatement (Third) of Intentional Torts to Persons, 10 J. Tort L. 281 (2017); Nancy Moore, Intent and Consent in the Tort of Battery: Confusion and Controversy, 61 Am. U. L. Rev. 1585 (2012); Kenneth W. Simons & W. Jonathan Cardi, Restating the Intentional Torts to Persons: Seeing the Forest and the Trees, 10 J. Tort L. 343 (2017).

Also informative are the following: Ellen M. Bublick, Tort Suits Filed by Rape and Sexual Assault Victims in Civil Courts: Lessons for Courts, Classrooms and Constituencies, 59 S.M.U. L. REV. 55, 59–64 (2006); Martha Chamallas, Consent, Equality, and the Legal Control of Sexual Conduct, 61 S. Cal. L. Rev. 777 (1988); Martha Chamallas, Gaining Some Perspective in Tort Law: A New Take on Third-Party Criminal Attack Cases, 14 Lewis & Clark L. Rev. 1351 (2010); Deana Pollard Sacks, Intentional Sex Torts, 77 Fordham L. Rev. 1051 (2008); Sarah Swan, Triangulating Rape, 37 N.Y.U. REV. OF L. & SOC. CHANGE 403 (2013); Sarah L. Swan, Between Title IX and Criminal Law: Bringing Tort Law to the Campus Sexual Assault Debate, 64 KAN. L. REV. 963 (2016). Aaron D. Twerski & Nina Farber, ESSAY: Extending Comparative Fault to Apparent and Implied Consent Cases, 82 Brook. L. Rev. 217 (2016).

To be sure, the doctrine of *informed consent* in tort law has received much more extensive discussion in the academic literature. See Restatement Third, Torts: Medical Malpractice § 12, Reporters’ Special Note to §§ 12 and 13 on Ethical Idealism versus Legal Pragmatism (Tent. Draft No. 2, 2024).

⁵ For a discussion of some of the differences, see Kenneth W. Simons, Consent and Assumption of Risk in Tort and Criminal Law, in Unravelling Tort and Crime (Matthew Dyson, ed., 2014).

⁶ Consent and willingness “in fact” are the terms employed in the Restatement, Second of Torts, § 10A, § 49 (comment a), and § 892(1) and comment b (1979). But this terminology is not ideal because it misleadingly suggests that the key contrast is with “consent in law” or “implied-in-law” consent. That contrast ignores other important categories of consent (apparent, presumed, and emergency doctrine). It also might suggest that “implied-in-law” consent is a meaningful and useful category, which it is not.

Consider some important issues that the actual consent conception raises. Should it be understood as a mental state or instead as a communication? Is it sufficient to preclude liability? Does it require intentional waiver of a right?

a. Understanding actual consent as subjective willingness

Should actual consent be understood as a mental state or mental action, on the one hand, or as a communication or performative, on the other? There is a lively debate among moral and legal theorists about this question.⁷ My view, and the view that appears to be endorsed in American tort law,⁸ is the first: actual consent in tort law means a person's subjective willingness that the actor's conduct occur, but actual consent does not include a requirement that the consenting individual communicate (or attempt to communicate) such willingness to the actor.⁹ However, this conclusion very much depends on the legal or moral context. In tort law, and arguably in criminal law as well, a mental state conception is and should be employed, while in contract law, a communicative conception of consent might well make more sense, because of the important social value of enforcing agreements according to the public terms upon which the parties have agreed.¹⁰

⁷ Scholars favoring the mental state or mental action conception include Larry Alexander, *The Ontology of Consent*, 44 *Analytic Philosophy* 102, [] (2014); Vera Bergelson, *The Meaning of Consent*, 12 *Ohio St. J. Crim. L.* 171 (2014); Kimberly Ferzan, *Consent, Culpability and the Law of Rape*, 13 *Ohio St. J. Crim. L.* 397, 398 (2016); Hurd, *supra*; Kenneth Simons, *Consent and Assumption of Risk in Tort and Criminal Law*, in *Unravelling Tort and Crime* (Matthew Dyson, ed., Cambridge University Press 2014); Westen, *The Logic of Consent* (2004). Scholars favoring the communicative or performative conception include Tom Dougherty, *The Scope of Consent* (Oxford 2021) (arguing that the consent-giver must express their will for how the consent-receiver may behave); Joel Feinberg, *Consent and Its Counterfeits*, in *The Moral Limits of the Criminal Law Volume 3: Harm to Self* (Oxford 1986); Tatjana Hornle, *Sexual Consent*, in *Routledge Handbook of the Ethics of Consent*, (2018); Franklin Miller & Alan Wertheimer, *Preface to a Theory of Consent Transactions: Beyond Valid Consent*, in Miller & Wertheimer, eds., *The Ethics of Consent* (2010); David Owens, *The Possibility of Consent*, 24 *Ratio* 402 (2011); Arthur Ripstein, *Equality, Responsibility, and the Law* (1999), at 206-208; and Stephen Schulhofer, *Unwanted Sex* (2000). See also Tadros, at 205-209 (observing that there are good arguments for both the mental state and the expressive view). A recent overview of this debate in the context of consent to sexual conduct is Aya Gruber, *Consent Confusion*, 38 *Cardozo L. Rev.* 415 (2016).

⁸ See Restatement (Second) of Torts §892(1) (1965): "Consent is willingness in fact for conduct to occur. It may be manifested by action or inaction and need not be communicated to the actor." However, no tort cases have been found in which the decision clearly turns on the view that consent need not be communicated to the actor in order to be legally effective.

⁹ Similarly, if one's conception of actual consent requires, not willingness, but instead *intention or desire* to permit the actor's conduct, the first view is that such a mental state or mental action is sufficient for consent, while the second is that the person must communicate that mental state to the actor.

¹⁰ See Gergen, *supra*, at []. For example, suppose A makes a contract with B agreeing, for a specified price, to supply B with parts for manufacturing B's automobile. And suppose B subjectively believes that his obligation expires one month after signing the contract, but the written contract contains no such expiration date. It would be socially undesirable and impractical to permit B to avoid B's payment obligations under the contract after one month based on B's subjective understanding. Similarly, it would

Employing subjective willingness as the standard of actual consent, as tort law typically does, prompts some significant questions about the content and scope of the standard. What occurrent mental state, if any, must plaintiff possess? Is the mental state a disposition of some sort?¹¹ If the law employs a standard of consent that is too easy to satisfy, the standard will give insufficient protection to autonomy. Thus, if the standard were understood to be whether, *if asked*, plaintiff would have welcomed or acquiesced in D's conduct, or instead would have registered an objection, actual consent would exist in a very wide range of circumstances—including when plaintiff is asleep or unconscious. For reasons explained in Section IV below, there are good reasons to be very cautious before concluding that such hypothetical or counterfactual consent is always legally effective.

In my view, actual consent should be characterized as a mental action, a *decision* to permit another's conduct, rather than (a) a mere fleeting attitude of acquiescence to that conduct, on the one hand, or (b) a disposition over some period of time not to object to that conduct, on the other.¹² For purposes of this article, I will not explore this difficult issue further.

I use the language subjective "willingness" rather than subjective "desire" advisedly. On the "willingness" conception that tort law embraces, it is not necessary that the person desire or welcome the other's conduct.¹³ A reluctant consent is still legally effective so long as the reluctance does not stem from illegitimate coercion or pressure.

be undesirable to require A to shoulder an obligation to provide the parts after 2022 under the contract based on A's subjective understanding that A had agreed in the contract to do so, if the written contract only obliges A to supply parts until the end of 2022.

¹¹ A similar issue arises in analyzing a legal requirement of knowledge, belief, or awareness. At this moment, I know and believe that $2+2=4$ and that the Earth is round, but such knowledge or belief does not require that I have the occurrent mental state of consciously considering those factual propositions. Latent or tacit knowledge or belief is sometimes sufficient to satisfy a legal knowledge or belief requirement. For discussion of the difficulty of specifying what state of mind or disposition is necessary and sufficient for such cognitive mental states, see Douglas Husak, *Negligence, Belief, Blame and Criminal Liability: The Special Case of Forgetting*, 5 *Crim L. & Phil.* 199 (2011); Kenneth Simons, *When is Negligent Inadvertence Culpable?*, 5 *Crim. L. & Phil.* 97 (2011); Kimberly Ferzan, *Opaque Recklessness*, 90 *J. Crim. L. & Criminology* 597 (2001).

¹² See Tadros, at 205; Ferzan, *Consent, Culpability*, *supra* note [], [cite]; Westen, [cite]. For a different view, see Dougherty, ch. 2 (arguing that advocates of the mental view of consent should require an intention to permit another's conduct; a choice or decision to permit that conduct should be insufficient).

¹³ See Tadros, at 209:

Borrow: Jess wants to skip class to go to a party, and asks to borrow Betty's car. If Betty does not consent, Jess will go to class. Betty thinks it Jess's decision whether to skip class, but wants Jess to go to class. Betty says to Jess: 'take my car if you want to, but I really want you to go to class.'

In this case, Tadros points out, Jess does not wrong Betty if she takes Betty's car with Betty's consent, yet Betty does not intend or desire that Jess take her car. *Id.* at 210.

Boring guest. Ann invites Ben to dinner out of a sense of obligation, hoping Ben will decline. Ben comes to dinner and is just as boring as Ann had feared.¹⁴

Hug from eccentric aunt. Caelynn agrees to meet Dayla, Caelynn's eccentric aunt who never bathes, at a restaurant. Caelynn reluctantly permits Dayla to hug Caelynn out of familial obligation. ... Dayla is not liable to Caelynn for battery.¹⁵

Here, Ann and Caelynn have consented, albeit reluctantly, to what otherwise would be a trespass or battery.

To be sure, a substantial difference exists, in kind as well as degree, between enthusiastically welcoming a passionate kiss from an intimate partner and tolerating, with the greatest reluctance, an unpleasant hug from an oblivious aunt. In the first case, the putative plaintiff affirmatively desires that the otherwise tortious conduct occur. In the second, the plaintiff is merely willing to permit the conduct. But in both cases, the actor's attitude suffices for actual consent. In both cases, the plaintiff should have no viable tort claim.

Finally, actual consent can be either express or inferred. *Express* actual consent refers to cases in which the plaintiff's subjective willingness is explicitly demonstrated, either in writing or orally. *Inferred* actual consent denotes cases in which such willingness is inferred from plaintiff's conduct. This second category is sometimes called "implied-in-fact" actual consent, but "inferred" actual consent is a much preferable locution because "implied" consent has multiple possible meanings.

Express and inferred consent are subcategories of actual consent. If a patient signs a consent form agreeing to a particular type of surgery, or verbally states unequivocally that he wishes to undergo the surgery, his willingness to permit the surgery is express. If a patient visits her doctor for an annual physical, the inference is very strong that she is willing to permit the ordinary physical contacts that are normally expected during such an examination. Her actual consent, although not explicit, can readily be inferred from the circumstances. Indeed, in some circumstances, actual consent can be inferred simply from silence or lack of objection.¹⁶

¹⁴ See Alexander, *supra*, at [].

¹⁵ See Restatement Third of Torts: Intentional Torts to Persons § 14, Illus. 2 (2026) (hereafter "R3IT").

¹⁶ A. John Simmons gives the example of a board meeting at which the chair announces, "We will meet again next Thursday unless there are objections to that date. Does anyone object?" If no one does, the chair may properly conclude that all have actually consented to his proposal. [cite]. Joel Feinberg characterizes this example as an instance of "tacit" consent. Harm to Self, [cite].

Another important question about consent concerns how to characterize its object. Actual consent vitiates the wrongfulness of an actor's conduct, but of course such consent is consistent with the plaintiff suffering harm (such as physical injury, property damage, or emotional distress). If P agrees to arm-wrestle with D, D does not wrong P when D grabs and bends P's arm in the course of the match, even if this causes physical harm. The legal result is that D is not liable in tort either for the conduct or for the consequent harm. We might characterize this result in one of two ways:

- (1) P actually consents both to the conduct and to the harm; or

b. Willingness vs. communication of willingness

When does the distinction between the mental state and the expressive interpretation of actual consent matter in tort law? The distinction, to repeat, is between:

(a) cases in which plaintiff was willing to permit the actor's conduct; and

(b) cases in which plaintiff communicated or expressed such willingness to the actor (or to another).

In most cases, the distinction is unimportant, because the trier of fact will typically not be convinced that the plaintiff was willing to permit the defendant's conduct unless the plaintiff communicated that willingness to someone. Moreover, when the plaintiff is *not* willing but the actor reasonably (though mistakenly) believes that the plaintiff is willing, the distinct category of *apparent* consent will protect the actor from liability, as we will see.

However, the distinction does matter when the evidence demonstrates (a) but not (b) or demonstrates (b) but not (a). Consider these possibilities in turn.

1. Actual willingness without communication of willingness

Perhaps the most compelling case for precluding liability in this category of cases is when the plaintiff attempts to communicate willingness to a group of potential tortfeasors but the actor does not receive the communication.

Here is an example.¹⁷

(2) P actually consents to the conduct, and to a *risk* of consequent harm, and as a matter of law, that consent precludes P from recovering for that harm.

The second view is a more accurate characterization in most circumstances. (An exception is where P is a genuine masochist, willing to accept a 100% risk of suffering harm.) On the general distinction between consenting to a loss and consenting to the risk of a loss, see Ronald Dworkin, *A Matter of Principle* 276-278 (1985).

¹⁷ The Restatement Second of Torts provides another example:

Tonsillectomy. Upon the recommendation of A, his doctor, B assents to an operation for the removal of a septum from his nose. Nothing whatever is said about performing a tonsillectomy. Actually B has had trouble with his tonsils and desires that A remove them too, but he forgets to mention it. A removes the septum and the tonsils while B is under a general anesthetic. Although B has not assented to the tonsillectomy, his actual willingness to submit to that operation constitutes consent to it and A is not liable to B.

Restatement Second, Torts § 49, Illustration 2 (1965).

Penn's punch in the stomach. Harry, an escape artist, decides to display his physical prowess by announcing that, at noon in a public park, he will invite anyone to punch him in the stomach. Penn, a magician who is envious of Harry, has no knowledge of the announcement but happens upon Harry at that time and place. Penn walks up to Harry, who has readied himself for a blow, and intentionally punches Harry in the stomach.¹⁸

Under the willingness conception of actual consent, Penn is not liable for battery. He is a culpable actor, and indeed might be guilty of a criminal law attempt, but he has not engaged in tortiously wrongful conduct. Insofar as tort law does not impose liability for mere attempts to cause tortious harm, Harry lacks any tort remedy.

The Restatement Second of Torts offers an analogous illustration of private uncommunicated consent to trespass to land:

Swimming pool. A informs his neighbor, B, that he is glad to have all of his neighbors make use of his swimming pool. C, another neighbor, without any knowledge of A's statement to B, enters the pool and enjoys himself. A brings action against C for trespass to land. On the basis of A's statement to B, it may be found that he has consented to C's entry and that C is not liable.¹⁹

However, this example is troubling. Even if uncommunicated actual consent is sufficient to preclude liability in most contexts, uncommunicated consent *to medical treatment* is arguably another matter. One concern is that the practice of permitting uncommunicated consent to preclude liability in the medical context might have the unfortunate consequence of diminishing the incentive for medical providers to obtain adequate consent from patients.

¹⁸ See R3IT § 14, Illus. 4. Harry Houdini, the famous magician and escape artist, is reputed to have died as a result of medical complications that ensued after he was punched in the stomach when he was not ready for the blow. The historical accuracy of this account has been disputed, however. See Kenneth Simons, Exploring the Relationship between Consent, Assumption of Risk, and Contributory Fault, in *Philosophical Foundations of the Law of Torts* (J. Oberdiek ed., Oxford University Press 2014), at n. 1.

¹⁹ Restatement Second, Torts § 892, Illustration 1 (Am. Law Inst. 1979). The most recent draft of the Restatement Fourth of Property, which covers trespass to land as well as other property torts, includes similar examples. [citations]

However, in some cases bearing a resemblance to the two illustrations in the text, the person's consent is based on a more fundamental mistake that arguably vitiates that consent. Consider this hypothetical:

Mistaken identity groper. X attends a costume party thrown by an acquaintance. He expects not to know anyone else. He suddenly walks up to a woman wearing a mask, whom he does not recognize. Without a word, he fondles her breasts, then rushes out of the room. As it turns out, the woman he touched, Y, was his girlfriend, who recognized him and found his conduct a bit odd but unobjectionable. When she later discovers the full story, however, she becomes extremely upset that he chose to act in such a way towards someone he believed to be a stranger.

But now suppose a person does not express willingness to anyone—for example, in variations on the prior two examples, the escape artist or the pool owner writes in a diary that he is willing to permit the punch or the use of his pool, or he sends an email or text to that effect only to himself. If such evidence is found to be credible, should we conclude that the person actually consented to the actor's conduct?²⁰

For purposes of tort liability, this scenario will be sufficiently rare that it can safely be ignored. But if the scenario did arise, how should tort law address it? And, apart from the law, does the “willing” person have a plausible *moral* claim against the actor?

The answer is unclear. On the one hand, the actor has displayed serious disrespect for the person's interests by ignoring what the actor believed to be a lack of subjective willingness. On the other hand, if the person has not made any attempt to communicate their willingness to anyone, their mental state of willingness is not very definite or stable, nor is it proximate in time to the otherwise wrongful conduct of the actor. For these reasons, we might not be justified in treating the person as actually consenting and thus as losing a legal or moral claim against the actor that the person would otherwise possess.

See Simons, Consent and Assumption of Risk in Tort and Criminal Law, at 343 (offering a very similar example). Here, it is quite possible that Y could recover for offensive battery, because she would understandably be seriously offended once she recognized X's motivation and mistake in fondling her. See also Dougherty, at 83 (pointing out that acting with disregard of another's interests is a different wrong than acting without being released from a duty not to act in that way).

By contrast, consent should indeed preclude liability in a different type of case: when P is willing for D to engage in otherwise tortious conduct even though P fully expects that D will choose to engage in such conduct despite D lacking awareness of P's willingness. Suppose, for example, that D owns property and has no objection to trespassers (or those who believe that they are trespassers) taking a shortcut across a particular corner of the property.

²⁰ Interestingly enough, an early draft of the Restatement Second of Torts contained an example of the plaintiff writing in a diary that he was willing to permit the defendant's conduct. Even in this scenario, according to the draft, consent would preclude liability. [cite]

Restatement Second, Torts § 892 contains language that might be read to require, not just that the plaintiff was willing to permit the defendant's conduct, but that plaintiff *intended* by his conduct or omission to give such permission:

Consent means that the person concerned is in fact willing for the conduct of another to occur. Normally this willingness is manifested directly to the other by words or acts that are intended to indicate that it exists. It need not, however, be so manifested by words or by affirmative action. It may equally be manifested by silence or inaction, if the circumstances or other evidence indicate that the silence or inaction is intended to give consent.

Id., comment b. But elsewhere, the Restatement Second endorses willingness, not intention, as its basic definition of the mental states required for consent.

2. Communication of willingness without actual willingness

Now consider the converse situation: a person communicates willingness yet is not actually willing to permit the actor's conduct. Specifically, a person might convey willingness mistakenly or insincerely. Consider these possibilities in turn.

Suppose the actor mistakenly but reasonably believes, based on a communication or expression of the person, that the person is willing. The actor may then rely on the distinct and well-recognized doctrine of *apparent* consent to preclude liability, as we shall see in section III.

In a second subcategory of mistake cases, tort law would clearly and properly *permit* liability—namely, when an actor mistakenly believes that the person's communication is an expression of genuine willingness, but that belief is *not* based on reasonable grounds. Here, apparent consent does not shield the actor from liability. Thus, suppose X threatens to punch Y unless Y apologizes for an insulting comment; Y does not apologize; X then punches Y. X cannot successfully argue that Y apparently consented, even if X honestly believes that Y's conduct was an expression of willingness to resolve their disagreement through a fistfight, because X's belief to that effect is clearly unreasonable. In this case, neither actual nor apparent consent can be demonstrated, and X will be liable for battery.

In a third category of cases, however, tort law gives less certain guidance—namely, when a person *insincerely* rather than mistakenly expresses willingness. Suppose the following significant variation of Penn's punch in the stomach:

Teller's punch in the stomach. Teller dares Barry, an escape artist, to display his physical prowess by permitting Teller to punch him in the stomach. Barry says that he has no objection to Teller doing so. But just before Teller is about to deliver the punch, he happens to see Barry's cell phone screen displaying Barry's text to a friend. The text states, "I told Teller he could punch me, but I really wish I hadn't. I didn't want to look like a coward. I hope he changes his mind!" Teller ignores the message and intentionally punches Barry in the stomach.

Has Barry consented to the punch? (For an analogous example in the context of sexual conduct, see "YES does not mean YES," below.)

If we define consent as an expression of willingness, then Barry has consented. However, in light of Teller's awareness of Barry's text, shouldn't Teller have asked Barry, before delivering the punch, whether Barry was really willing to let Teller punch him? And if he did not make such an inquiry, shouldn't Teller's consent defense be rejected? Examples such as this support the view that subjective willingness is the foundational and more attractive criterion of actual consent. To be sure, for pragmatic and evidentiary reasons, it often makes sense for the law to treat a communication of consent as sufficient to preclude liability. But it is much more difficult to defend the view that a communication of actual consent is *constitutive* of actual consent. Put

differently and more abstractly, it is unjustifiable and question-begging, in the case of a mental phenomenon M, to equate M with a communication or expression of M—whether M is consent, intent, belief, desire, love, or any other mental phenomenon.

Of course, if Teller did not see Barry's text, and if Teller had no other reason to believe that Barry was unwilling to permit the punch, Teller would be justified in punching Barry, again based on the doctrine of apparent consent.

c. Actual consent is not sufficient to preclude liability

Actual consent alone is obviously insufficient to preclude tort liability, unless it encompasses (or is supplemented by) requirements of competence, capacity, voluntariness, and knowledge. Suppose P is willing that D engage in sexual conduct with P only because D has threatened P with serious physical harm. In this context, willingness to permit the conduct, or even enthusiastic desire that D engage in the conduct rather than make good D's threat, is hardly a sufficient condition of legally effective consent. (These other requirements of actual consent are beyond the scope of the present article.)

It might be conceptually simpler to treat the category of actual consent as addressing only the issue of whether the plaintiff prefers or is willing to accept the otherwise tortious option presented by the actor to the other options that are available at the relevant time. One could then treat all other consent requirements, such as competence, knowledge and voluntariness, as supplemental requirements that must be met before actual consent can be considered morally or legally transformative, but not as constitutive of actual consent.

On this view, if A points a gun at B's head, requesting B's wallet, and B hands over his wallet to A, B actually consents to A taking the wallet under the circumstances. Of course, in this example, duress or lack of voluntariness would make that actual consent legally ineffective. This way of characterizing actual consent has the benefit of capturing the idea that there is usually something especially wrongful about D proceeding to engage in otherwise tortious conduct if P does not even have the *opportunity* to assent, e.g. if P is unconscious or asleep.²¹

²¹ See Kimberly Ferzan & Peter Westen, How to Think (Like a Lawyer) About Rape, 11 Crim Law and Phil 759 (2017). Consider the public outrage over the light sentence that a California judge imposed on Brock Turner, after finding him guilty of raping an unconscious victim.

<https://www.nytimes.com/2016/06/07/us/outrage-in-stanford-rape-case-over-dueling-statements-of-victim-and-attackers-father.html>

The term "assent" (which was employed in the first Restatement of Torts) is in some ways preferable to "actual consent," especially if one treats the additional requirements of capacity, lack of duress, and lack of substantial mistake as extrinsic or additional requirements rather than part of the definition of assent or actual consent. If P is willing to permit D to have intercourse with D in order to avoid an immediate threat of force from D, it is sensible to characterize the encounter as an instance of P assenting to intercourse but doing so under such coercive circumstances that assent is insufficient for legally effective consent.

Earlier drafts of the Restatement Third employed this framework.²² However, members of the ALI strongly resisted the idea that a choice in the face of a deadly threat might constitute “consent” in any sense of the term. The Reporters of the Restatement therefore capitulated and defined actual consent as including additional requirements of capacity, competence, voluntariness, and knowledge. So much for conceptual simplicity.

d. Actual consent does not require intentional waiver of a right

Actual consent should not be understood to require that a person intentionally (purposely or knowingly) waived a legal (or moral) right, under that description. That is, we should not require that the person knew he was giving up his legal (or moral) right, or that that was his purpose. Why not? Because consent is a normative power, whereby a person permits what would otherwise be either a violation of his rights or a breach of the actor’s duty to him. But although this is indeed the legal (or moral) significance and effect of consent, the person who exercises the power to consent need not know or intend that by doing so, he is either extinguishing a legal (or moral) right he would otherwise have or releasing the actor from a duty. Rather, he only needs to satisfy the criteria of consent.

The consenting person must, of course, be willing to permit the actor’s conduct, and must not have acted under duress or mistake, and so forth. That is what it means to satisfy the criteria of actual consent. But satisfying those criteria is entirely consistent with the person holding erroneous views of the legal (or moral) effect of his permission.

For example, suppose someone plays a contact sport such as football or wrestling, but he has an unusual belief. He thinks that if he is injured as a result of a normal type of physical contact for that sport, he can successfully sue the person who injures him, unless he signs a written release of liability. In the absence of a release, this individual has no intention to waive his right to sue for damages. But a court would properly conclude that he has indeed consented and is precluded from a tort recovery.²³

²² R3IT § 113, Prelim. Draft No. 1 (2013); id § 113, Prelim Draft No. 2 (2015). Peter Westen employs this framework in his book, *The Logic of Consent*, and in related writings about consent. [cites]

²³ See Simons, *Reflections on Assumption of Risk*, 50 UCLA L. Rev. 481, 497-498 (2002); Westen, at 31-32. Larry Alexander argues that the required mental state for consent is that of waiving a right, which in turn means “being disposed not to object to another’s conduct based on that right.” Alexander, *supra*, at 107-108 & n. 17. But on this view, “waiver” has an unusual and specialized meaning, for one can be disposed not to object without knowingly waiving a legal right to sue for the conduct that one is disposed to permit. Tom Dougherty offers several arguments in support of my view that consent does not require an intention to release the actor from a duty. Tom Dougherty, *The Scope of Consent*, ch. 7 (Oxford 2021).

English and Canadian law apparently do require an intention to waive legal rights in the analogous context of assumption of risk: a passenger who chooses to accept a ride with a drunk driver retains a right to sue unless she believes that in accepting the ride, she is waiving that right. See Simons, *Reflections*, *supra*. Insofar as a narrow version of assumption of risk is a defensible doctrine (and I think it is), this position is similarly problematic. After all, ordinary people often do not understand the legal implications (either inculpatory or exculpatory) of their actions. In most circumstances, such mistakes about the law are

But is the more demanding, maximalist conception of consent requiring intentional waiver sometimes appropriate? Consider consent to medical treatment. When a patient signs a consent form permitting a specified kind of surgery, it is helpful to include some language clarifying that by agreeing to the surgery, the patient is losing the right to compensation if the patient suffers harm as a result of the agreed-upon surgery.²⁴ Indeed, the law might have good reason to *require* the inclusion of explicit waiver language of this sort in medical consent forms relating to surgical treatment. Medical treatment often poses very significant risks of harm, so the inclusion of such language might prompt some patients to consider especially carefully whether the treatment is worthwhile. And a practice of securing this more fully informed type of consent arguably treats patients with greater respect.

Nevertheless, a knowing waiver of one's legal right to tort compensation is not a general requirement of actual consent. Insisting on that requirement in all circumstances, including sexual conduct and informal recreational activities, on pain of tort liability, would drastically expand tort liability and could therefore disempower individuals from engage in fulfilling and mutually desirable joint activities.

II. So-called "implied" consent

Now let us turn to consent categories other than actual consent. Courts often use the umbrella term "implied" consent for any or all of these other doctrines (as well as the doctrine of inferred consent), in contradistinction to express actual consent.²⁵ But the promiscuous use of this term does not further analytical clarity. Accordingly, the Restatement Third of Intentional Torts avoids such terminology.²⁶ In this article, similarly, I will not again refer to "implied" consent—except as part of the name of the last supposed category of consent, "implied-in-law" or constructive consent. And that last category, I will later conclude, does not deserve to be treated as a genuine category of consent.

legally irrelevant. Rather, all that matters is that, given the facts of which the person is aware, and the conduct she chooses to engage in, the relevant legal implication indeed follows.

The point that actual consent does not presuppose an intention to waive one's legal rights is also reflected in tort doctrine's distinction between implied assumption of the risk of a defendant's negligence and express assumption of such a risk through a contractual waiver. See Kenneth Simons, Assumption of Risk and Consent in the Law of Torts: A Theory of Full Preference, 67 B.U. L. Rev. 213, 225-227 (1987). Just as a person can consent to (or assume the risk of) negligent conduct X without intending to waive her legal right to recover for the harm caused by X, she can waive the right to recover (through express assumption of risk) for the risks of conduct without consenting to the specific conduct that caused her harm.

²⁴ A separate question is whether a waiver of this sort is enforceable even when the defendant's conduct (although within the scope of consent in the sense that it accurately describes the type of surgery the doctor performed) is negligent and causes harm. It often is not enforceable. See *Tunkl v. Regents of Univ. of Cal.*, 383 P.2d 441 (Calif. 1963).

²⁵ [cites]

²⁶ See R3 IT § 13, comment d.

III. Apparent consent (D reasonably believes that P actually consents)

Sometimes, although a person does not actually consent, the actor reasonably believes that the person actually consents. Most American courts will preclude liability in such a case, under the label of “apparent consent.” The following illustration is based upon *O’Brien v. Cunard Steamship Co.*,²⁷ a famous case exemplifying this category:

Vaccination. As passengers are leaving a ship, they are all individually informed that they must be vaccinated to enter the United States, and the risks of the vaccination are disclosed. Luna, a passenger, tells a friend that she is unwilling to be vaccinated, but she stands in line, passes before Abby, the ship’s nurse, and holds out her arm. Abby vaccinates Luna.²⁸

Because of Luna’s apparent consent, Abby is not liable for battery.

If an actor honestly believes that the plaintiff actually consents, but a reasonable person in the position of the actor would not so believe, the actor cannot rely on apparent consent.

Sexual boor. Boris, on his first date with Pauline, suddenly kisses her fervently, and continues to do so despite her repeated and clear verbal protests. Boris hears her protests but ignores them because he subjectively believes that her protests are insincere and that she actually consents.²⁹

Boris is liable to Pauline for offensive battery because his belief that she actually consents is obviously unreasonable.

For those familiar with criminal law concepts, the tort doctrine of apparent consent is essentially a mens rea or fault doctrine in actus reus clothing. Tort liability requires, not just absence of actual consent, but also the absence of a reasonable belief by the actor that the victim consents. In effect, then, the actor must possess the mens rea of negligence: if the scenario is one in which the plaintiff does not actually consent, the tort defendant will nevertheless not be liable unless he or she is negligent with respect to the plaintiff’s lack of actual consent.³⁰

²⁷ 154 Mass. 272, 28 N.E. 266 (1891).

²⁸ See R3IT, § 17, Illus. 1.

²⁹ See R3IT, § 17, Illus. 3.

³⁰ Simons, Consent and Assumption of Risk in Tort and Criminal Law, at 336 n. 15; Simons, A Restatement (Third) of Intentional Torts?, 48 Ariz. Law Rev. 1061 (2006).

Kimberly Ferzan objects that “the doctrine of apparent consent captures cases that are not consent at all.” *Losing the Right to Assert You’ve Been Wronged: A Study in Conceptual Chaos?*, in *Civil Wrongs and Justice in Private Law* (Paul B. Miller and John Oberdiek eds., Oxford 2020). She is correct. In criminal law terms, apparent consent is effectively a reasonable mistake defense that vitiates mens rea and thus vitiates culpability. But tort law does not distinguish between actus reus and mens rea as clearly as criminal law does. It is thus defensible for courts to employ the concept of apparent consent so long as they clarify that the concept describes the actor’s lack of fault, not the plaintiff’s actual consent.

When an actor justifiably relies upon a person's apparent consent, reasonably but mistakenly believing that the person has actually consented, apparent consent precludes liability but not by virtue of vitiating a wrong. Objectively speaking, the person who did not actually consent has indeed been wronged. In this respect, apparent consent is analogous to reasonable mistakes by actors who rely upon privileges such as self-defense or defense of property. If D reasonably but mistakenly believes that P is threatening him with a knife, D may use a degree of force that is proportional to such a threat. Objectively, P is not posing a threat of serious harm, and thus self-defense doctrine does not play its usual role of *fully* justifying an actor's commission of a *prima facie* wrong.

On the other hand, in both situations, there is an important sense in which the actor has acted reasonably, justifiably, and properly. Not only is such an actor without fault, he or she often engages in conduct that, from the *ex ante* perspective, is socially desirable.³¹ A tort system in which doctors, nurses, athletes, friends, and lovers are entitled to rely upon the reasonable appearance of consent facilitates affordable but autonomy-respecting medical care, mutually beneficial recreational activities, and valuable intimate personal relationships. But if the actor in all these situations knew that he or she would face tort liability whenever the other person did not actually consent, without regard to whether such consent reasonably seemed to exist, the actor might either choose to expend excessive time or resources in investigating whether actual consent exists,³² or choose not to engage in the activity at all. Either type of choice will often be to the detriment of both actors.

The distinction between apparent consent, on the one hand, and inferred or "implied-in-fact" actual consent, on the other, is sometimes a fine one. Indeed, often, the evidence supporting inferred actual consent will often also support *apparent* consent and vice versa. Suppose a magician asks for a volunteer from the audience to be confined in a box as part of the magic act; plaintiff raises his hand, approaches the stage, and steps into the box. The evidence here amply shows not only that the plaintiff was willing to be confined, but also that the magician reasonably believed that plaintiff was willing to be confined.

Nevertheless, sometimes the evidence supports apparent consent but not inferred actual consent:

Blood pressure cuff. Pam is a refugee who has never been treated by a doctor or nurse before. At her first physical, the nurse, Sam, asks her to be seated, announces that he will now take her blood pressure, places the blood pressure cuff on her arm, and then pumps it up. At this point, Pam expresses her strong objection to being touched in this way. Sam immediately removes the cuff, but Pam suffers a bruise from the procedure. If Sam had no reason to know that Pam was unfamiliar with and objected to the procedure, then he can rely on apparent consent to preclude liability, but he cannot rely on inferred

³¹ Similarly, if an actor employing a criminal law defense is reasonably mistaken, sometimes she is, in this *ex ante* sense, justified, rather than excused, notwithstanding the mistake. See Simons [cite]; Duff [cite].

³² Apparent consent's requirement that the actor reasonably believe that the other actually consents does impose a duty on the actor to take *reasonable* steps to determine whether such consent exists.

actual consent, because the factfinder cannot infer actual consent in these unusual circumstances.³³

We might conceptualize the distinction between inferred actual consent and apparent consent by imagining that, immediately after the otherwise tortious conduct has occurred, the plaintiff is given a reliable truth serum and asked whether, at the time of the actor's conduct, he was willing to permit it. If plaintiff were to reply yes, then he actually consented. If plaintiff were to reply no, but a reasonable person in the actor's position would have believed at the time of the conduct that the plaintiff actually consented, then the plaintiff's recovery is properly precluded, but on the basis of apparent consent, not actual consent.

Several principles and policies justify precluding tort liability because of apparent consent. As a matter of fairness, actors should ordinarily be permitted to rely upon their reasonable beliefs about the wrongfulness of their conduct, including whether another has consented to that conduct. Also, a general practice of recognizing apparent consent facilitates the substantial social benefits of consensual interactions. In the absence of this doctrine, individuals who desire to play a contact sport, to provide medical treatment, or to engage in physically intimate conduct with another would be at risk that seemingly consensual interactions would result in tort liability if the factfinder later concluded that one of the participants did not actually consent. Finally, the apparent-consent doctrine is not unfair to those who do not actually consent but who reasonably appear to consent. A person who objects to the behavior of an actor that most other persons find unobjectionable or desirable often retains the ability to express that objection and thus to deny the application of apparent consent. If P objects to a custom of shaking hands or hugging and voices that objection to D, yet D persists in following the custom, D may no longer rely on either actual or apparent consent to preclude liability.³⁴

Some courts endorse a narrower view of reasonableness for purposes of apparent consent: they require that the actor's reasonable belief that the person actually consents must be based on the words or conduct of the plaintiff. However, most courts that have addressed the issue reject that additional requirement,³⁵ and I believe that this is the better view. To be sure, in most situations, the actor's belief that the plaintiff consented will not be reasonable unless his belief is based on the words or conduct of the plaintiff. But in other situations, the actor's belief that plaintiff actually consented can be reasonable even if it is based (a) on the words or conduct of someone other than the plaintiff or (b) on customary norms even if plaintiff has engaged in no affirmative conduct at all.

The narrower view of reasonableness treats apparent consent either as a kind of estoppel doctrine or as a doctrine focusing on the plaintiff's communication with the actor: plaintiff by his

³³ See R3IT § 17, Illus. 4.

³⁴ The fault requirement that apparent consent encapsulates is especially appropriate for the torts of battery and false imprisonment, because the intent required for those torts is merely the intent to contact or to confine; the actor need not have the malicious purpose to cause physical or emotional harm or even the knowledge that such harm is substantially certain to occur.

³⁵ [cites]

own words or conduct has created the misimpression that he or she actually consents.³⁶ The narrower view might also presuppose an unduly narrow view of the ontology of consent, i.e., of what the actor must be reasonably mistaken about, for it might incorrectly assume that the plaintiff's actual consent requires that the plaintiff affirmatively desire, or even manifest or express a desire, that the actor engage in the otherwise tortious conduct. As noted earlier, that assumption is unwarranted.

The broader view, by contrast, better furthers or instantiates the policies that the apparent-consent doctrine promotes, because it precludes liability whenever the defendant is without fault in mistakenly believing that plaintiff consents, and it facilitates, to a greater degree, the social benefits of mutually advantageous human interactions.³⁷

Moreover, the narrower view cannot account for many other cases in which courts preclude liability even though the plaintiff does not use words or engage in affirmative conduct by which plaintiff intends, or that a reasonable actor would believe are intended, to express actual consent.

³⁶ This narrower view is similar to the conception of apparent authority in agency law, under which the principal must "manifest assent" to the agent in order for the agency relationship to arise. Such a manifestation can occur "through written or spoken words or other conduct." Restatement Third, Agency §§ 1.01, 1.03 (2006). "[A]pparent authority holds a principal accountable for the results of third-party beliefs about an actor's authority to act as an agent when the belief is reasonable and is traceable to a manifestation made by the principal. See § 2.03, Comment c." *Id.*, § 7.08, comment b. "Manifested assent" is thus similar to inferred consent in not being express, but different insofar as it requires, as inferred consent does not, a "manifestation" or communication from the person who assents or consents.

³⁷ However, it might plausibly be argued that the narrower view of apparent consent should govern in mistaken identity cases such as the following:

Green dress. Dana and her wife have been invited to a large party. Dana's wife, wearing a green dress that Dana especially likes, arrives at the party first. When Dana arrives at the party, the room is dark and filled with guests. Dana sees a woman facing her and wearing a green dress, of the same height and with the same color hair as her wife. Believing that the woman is her wife and that the woman sees her approaching, Dana walks up to the woman and hugs her very closely. The woman turns out to be Vera, a stranger, wearing a very similar dress, who is offended by the intimate touching.

See R3IT, § 17, Reporters Note to Comment c.

In this case, perhaps courts should find Dana's mistake unreasonable as a matter of law because she has invaded the interests of a different person than the person she meant to interact with. Alternatively, a court might reach the same result, recognizing liability, by adopting the view that even a reasonable mistake about actual consent is legally irrelevant if it is a mistake about the identity of the victim. The first Restatement took the latter position in § 51, Comment *a* (Am. Law Inst. 1934) ("A mistaken belief, however reasonable, on the part of the one who inflicts the invasion, that the person suffering the invasion has given assent thereto ... does not prevent liability."); *id.*, Illustration 1 (Surgeon is given the record of the wrong patient and therefore conducts the wrong operation; surgeon is liable for battery). The Restatement Third, Intentional Torts to Persons does not take a position on cases such as "Green dress." R3IT § 17, comment *a*, Reporters' Note.

Handshake. At a business meeting, D greets P by reaching out and shaking P's hand before P has the chance to react. As it turns out, P actually objects to the contact.

Most courts would deny tort liability for battery here, because it is reasonable for D to believe that business people generally consent to such contacts. Yet P has not, by his own words or conduct, expressed a willingness to be touched. The same is true in *Blood pressure cuff*.³⁸

IV. Hypothetical or presumed consent

Apparent consent, as characterized in the prior section, presupposes that the actor reasonably believes that the person actually consents. But what should be the result when the person does not actually consent, and the actor knows this, yet the actor also reasonably believes that the person *would* actually consent, if asked? Let us call such a case an instance of hypothetical, counterfactual, or presumed consent. Sometimes, I will suggest, when the facts demonstrate hypothetical consent but neither actual nor apparent consent, the actor should not be liable.

Hypothetical or presumed consent is a surprisingly important, yet largely neglected, category. Many standard examples of consent other than actual consent can only be explained by hypothetical or presumed consent. Consider a tap on the shoulder to get someone's attention. Although tort liability in such a case is ordinarily unjustified, it is difficult to explain this result with the categories of actual and apparent consent. The recipient of the tap will usually have no mental attitude of willingness or desire to be touched in this manner. He very likely is giving no thought to consent when the touching occurs. And for precisely the same reason, the actor also cannot rely on apparent consent: a reasonable person in the position of the actor would not believe that the recipient was actually willing, or desired, to be touched. The category of hypothetical or presumed consent is necessary in order to explain nonliability in such a case. (Additional examples will be provided shortly.)

This category of consent confronts an important objection. Ronald Dworkin famously balked at the use of hypothetical or counterfactual consent in the context of political justification:

³⁸ Tort law's terminology "apparent" consent is an awkward fit in some cases. P, the recipient of the handshake, arguably did not "apparently consent," insofar as she did nothing affirmative to convey willingness to be touched by D. Rather, the point is that D relied on reasonable appearances in believing that the conduct D engaged in was consented to. Perhaps it would be preferable not to employ the traditional terminology of "apparent consent" if it lends itself to this confusion. If a court agrees with the analysis suggested above, that a broad rather than narrow conception of apparent consent should be employed, a different locution might be desirable.

Alas, there is no obvious and sufficiently simple substitute term. One option is "reasonable mistake about consent," but this is not optimal, because a court should be able to employ the category of apparent consent whenever the evidence clearly shows that the actor reasonably believed that the other actually consented, even if it is less clear whether the other actually consented. In such a case, the actor might not have been *mistaken* about actual consent.

“[A] counterfactual consent is not some pale form of consent. It is no consent at all.”³⁹ In the present context, at least, I disagree.⁴⁰ Hypothetical or presumed consent has an important role to play in tort law, though its role ordinarily is and should be subsidiary to the role of actual consent, as we will see.

This section will explore the following issues. What is an appropriate general standard of presumed consent? What is the relevance of the value of surprise and spontaneity? And what role does presumed consent play relative to the other categories of consent?

a. The general standard of hypothetical or presumed consent

Let us begin by considering the most recent draft of the Restatement Third, Torts: Intentional Torts to Persons, which formulates this category of consent as follows:

Presumed consent exists if:

- (1) the actor is justified, under prevailing social norms, in engaging in the conduct, and
- (2) the actor has no reason to believe that the person would not have actually consented to the conduct if the actor had requested the person’s consent.⁴¹

The Restatement employs “presumed consent” as the name for this category of consent, though the terms “hypothetical,”⁴² “counterfactual,” and “dispositional”⁴³ consent have essentially the same meaning.

³⁹ Dworkin, *supra* at 278. Dworkin’s assertion is a critique both of Posner’s use of counterfactual consent to justify the view that courts should decide cases so as to maximize wealth, and of Rawls’ use of hypothetical consent in *A Theory of Justice*. *Id.* at 275-280. In earlier writing, Dworkin offered a very similar critique of Rawls’ original position argument: “A hypothetical contract is not simply a pale form of an actual contract; it is no contract at all.” Dworkin, *Taking Rights Seriously* 151 (1978).

For further discussion of this objection that hypothetical consent is no substitute for the real thing, see David Enoch, *Hypothetical Consent and the Value(s) of Autonomy*, 128 *Ethics* 6 (2017). See also Yaffe, [cite].

⁴⁰ David Enoch’s thoughtful article about hypothetical consent is instructive here. As he explains, *id.* at 22, “The thing to do is to ask why it is that actual consent matters, when in fact it does. And then we need to ask whether the concerns to which actual consent answers are also answerable by hypothetical consent (and if so, which hypothetical consent, in which hypothetical conditions).”

⁴¹ R3IT § 17(b).

⁴² This is the terminology most widely employed in the analogous context of consent theories that purport to justify the legitimacy of the state. See Peter, Fabienne, “Political Legitimacy”, *The Stanford Encyclopedia of Philosophy* (Winter 2023 Edition), Edward N. Zalta & Uri Nodelman (eds.), URL = <<https://plato.stanford.edu/archives/win2023/entries/legitimacy/>>. Peter Westen also employs it in the context of consent to sexual conduct for purposes of criminal liability. Westen, *supra*, at 284-293; Kenneth Simons, Book Review: *The Conceptual Structure of Consent in Criminal Law* (reviewing Peter Westen, *The Logic of Consent*), 9 *Buff. Crim. L. Rev.* 577, 629-631 (2006)).

⁴³ See Joel Feinberg, *Harm to Self* [cite]:

Tort law has long recognized the emergency doctrine, justifying emergency life-saving treatment when it is infeasible to obtain consent from the plaintiff or from a person authorized to consent for the plaintiff. This doctrine is best understood as a subcategory of the presumed consent category in which the reasons to preclude tort liability are unusually compelling, because the plaintiff's life or health is at stake.⁴⁴ Consider these examples:

Dispositional consent ... is not actual consent, and can only be presumed, not known. Where actual consent can be determined at little cost or delay, mere presumed dispositional consent will not be sufficient to transfer any responsibility to B for A's act, or to deprive B of his rightful grievance after the fact. But where (1) the evidence of B's disposition to consent is overwhelmingly strong (much more than a mere guess or a morally risky "presumption"), and (2) A has no opportunity to solicit it from B in the available time, and (3) the envisaged action of A is necessary not merely to secure a benefit for B but to avert a serious loss or harm, then the Volenti maxim can be stretched without strain to protect A from liability to B and to deprive B of any grievance against A. Thus if A sees a truck bearing down on B, who has his back turned to the danger, and there is no time even to shout a warning, he may with some violence push B out of the path of danger, even without B's explicit authorization to do so. That is not because of some actual consent that existed unvoiced, but because of the reasonable expectation that normal authorization would have been forthcoming had there been an opportunity for it. ... Since those conditions are vague, there will be many troublesome borderline cases.

In speaking of "authorization," Feinberg is referring to his communicative conception of consent. But his analysis can also be applied to a mental state or mental action conception of consent such as willingness.

Notice that Feinberg's requirements for dispositional consent are more demanding than the requirements for hypothetical consent advanced in the Restatement Third of Intentional Torts and defended in this article. For example, the sleeping camper illustration below would satisfy the Restatement's criteria but not Feinberg's.

⁴⁴ R3IT § 18 provides the following criterion for the emergency doctrine or exception:

If an actor engages in otherwise tortious intentional conduct for the purpose of preventing or reducing a risk to the life or health of another, the actor is not liable to the other, provided that:

(a) the actor reasonably believes that:

(i) the actor's conduct is necessary in order to prevent or reduce a risk to the life or health of the other that substantially outweighs the other's interest in avoiding the conduct; and

(ii) it is necessary to act immediately, before it is practicable for the actor to obtain actual consent from the other or from a person empowered to consent for the other, in order to prevent or reduce the risk to life or health; and

(b) the actor has no reason to believe that the other would not have actually consented to the conduct if there had been the opportunity to do so.

Broken arm. Pio is crossing the street when he receives a much-anticipated text message from a potential employer. Pio stops to read the text. Dameer, realizing that Pio is about to be hit by an approaching car, tackles Pio, accidentally breaking his arm.⁴⁵

Confinement in police car. Due to an anonymous and credible tip, police officers reasonably believe that P's husband has a gun and is threatening her within her home. The police surround P's house and knock on her door. When P answers, the police try to explain the situation, but she is too inebriated to understand. When the husband appears, police grab P and carry her to the police car to ensure her safety.⁴⁶

Because of the emergency doctrine, neither D would be liable for battery or (in the second case) for false imprisonment.

Now consider five other examples of presumed consent that do not fit within the narrow emergency doctrine but have a very similar justification:

Tap on the shoulder. In a movie theater, Ellen asks a stranger, Roberta, to turn off her cell phone. When Roberta does not respond, Ellen taps Roberta on the shoulder and repeats her request. The tap aggravates a preexisting shoulder injury, causing Roberta bodily harm. Because of presumed consent, Ellen is not liable to Roberta for battery.⁴⁷

Pat on the buttocks. Ethan and Roberto are members of the high school basketball team. During a game, a teammate passes the ball to Roberto, who makes a difficult layup. Ethan approaches Roberto from behind and congratulates him with a pat on the buttocks, as is customary on the basketball team. Unknown to Ethan, Roberto finds any such contact very objectionable. Because of presumed consent, Ethan is not liable to Roberto for offensive battery (or for harmful battery if the contact surprisingly causes bodily harm).

⁴⁵ See R3 IT § 18, Illus. 7.

⁴⁶ See Restatement Third, Torts: Intentional Torts to Persons, Tentative Draft 6, § 17, Illus. 8 (2021).

⁴⁷ For a somewhat similar analysis, see Scott Herskovitz, *The Search for a Grand Unified Theory of Tort Law*, 130 Harv. L. Rev. 942, 950-951 & n. 24 (2017) (reviewing Ripstein, *Private Wrongs*):

When I'm standing on the street corner, oblivious to your presence, I haven't done anything that should lead you to believe that you have my permission to tap me on the shoulder. What you should believe is that you don't need my permission to tap me, not that you have it. ... [C]onsent is a state of mind, and one need not be in that state of mind when on a street corner. Now, it is true that tort sometimes treats people as if they've consented, even when they haven't. ... But there is an important difference between holding one's arm up for a vaccination and standing on a street corner. The former reads as consent because presenting one's body to be touched is a common way of signaling the willingness to be touched. In contrast, standing on a street corner is not a common way of signaling anything, much less one's willingness to be touched.

Sleeping camper. Alfonso and Blythe, who are acquaintances, are camping together. Blythe falls asleep by the fire. As the fire peters out, the sleeping Blythe begins shivering. Alfonso places a sleeping bag over Blythe in order to keep Blythe warm. Because of presumed consent, Alfonso is not liable for offensive battery.⁴⁸

Padlocked cabin. Calista and Diwata, who are acquaintances, are camping together, staying in a cabin in the woods. Calista falls asleep. Diwata hears people in the neighboring cabin making boisterous, drunken noises and decides to investigate. The only way for Diwata to lock the cabin is with Diwata's padlock. To assure Calista's safety in the brief period when Diwata speaks with the neighbors, Diwata locks the cabin and departs to speak with the drunken neighbors. Calista awakens before Diwata returns. Because of presumed consent, Diwata is not liable to Calista for false imprisonment.

Holding hands. Elise and Fae are on their third date. After an enjoyable dinner, as they are leaving the restaurant, Elise suddenly reaches out and holds Fae's hand for the first time. Fae pulls away and explains that F is not ready for any physical intimacy. Elise is not liable to Fae for offensive battery. Even if Fae was not willing to permit the contact, and even if the touching was sufficiently sudden that E does not reasonably believe that Fae actually consented to the contact, Elise can rely upon F's presumed consent under the circumstances.⁴⁹

In these five illustrations, the plaintiff does not actually consent, because he or she had little or no opportunity to give actual consent prior to the actor's conduct. In "Tap on the shoulder," for example, Roberta might not even be aware of Ellen's presence before feeling the tap. And for the same reason, the actor also cannot rely on apparent consent: a reasonable person in the position of the actor would not believe that the plaintiff had given actual consent. However, in all five of those Illustrations, the actor had no reason to believe that the plaintiff *would not* have consented to the actor's conduct if the plaintiff had considered the question. This qualification is critical. In each case, if the qualification was not satisfied—for example, if Ellen knew that Roberta would object to the shoulder tap, or if Elise knew that Fae would object to Elise holding Fae's hand—then the actor would properly be liable. In addition, in each Illustration the actor's conduct is justified under current societal norms—a factor that is further discussed below.

In most circumstances, an actor must obtain the plaintiff's actual consent and is not entitled to rely on presumed consent. Presumed consent is not established simply because the actor has no reason to doubt that the plaintiff would have actually consented if the plaintiff had

⁴⁸ Here is a variant, based on an example in Enoch, at 13 n. 17:

Sleeping passenger. H, on the same train as G, overhears that G is getting off at stop X. As the train approaches X, G is soundly sleeping. H shouts to G that G's stop is very soon, but G remains asleep. H taps G on the shoulder in order to wake him up. Because of presumed consent, H should not be liable to G.

⁴⁹ These five examples are drawn from R3IT § 17, Illus. 6, 7, 8, 9, and 10, respectively.

thought about the question. If a jurisdiction employed such a broad conception of presumed consent, the consequences would be disastrous: an actor would be entitled to interfere with the rights of another based merely on a generally reliable predictive judgment about what most people in the other's situation would probably have consented to, even in circumstances when obtaining actual consent would be entirely feasible. A doctor or nurse could treat a patient without seeking actual consent based merely on reliable estimates of a typical patient's predilections. An actor could engage in a form of sexual intimacy that most individuals would permit, without making any effort to determine whether the actor's partner shares that typical preference. But tort law does not, and certainly should not, permit a person's individual right to decide whether to permit a tortious invasion to be overridden so easily.

Put differently, actual consent is the gold standard of consent, resting on concrete proof of what a person *does* prefer, rather than a merely hypothetical or counterfactual judgment of what he or she (or most people, or a reasonable person) *would* prefer. The law should ordinarily apply the gold standard whenever this is feasible.

Accordingly, presumed consent under Restatement Third § 18(b) requires proof of an additional element—that under prevailing social norms, the actor is justified in engaging in the conduct in the absence of the other's actual consent. One such justification is that the invasion of the plaintiff's interests is undertaken for the plaintiff's benefit. Another justification is that the invasion is minimal and, even if not undertaken for the actor's benefit, is customary in the community. Yet another justification is the value of surprise and spontaneity, which can enrich the value of certain activities. Thus, suppose plaintiff agrees to take a scary ride in an amusement park, the very point of which is to subject customers to sudden frights. Pursuant to actual or presumed consent, the plaintiff is precluded from a tort recovery even though the conduct of the provider of the ride would otherwise constitute an assault.

Customary norms and expectations are highly relevant to whether the actor is justified in proceeding absent actual consent. Consider variations of *Pat on the buttocks* in which the actor who slaps the plaintiff's buttocks is another player's parent or a member of the opposing team: it would then be a much closer question whether presumed consent applies and precludes liability. Similarly, in *Holding hands*, if Elise and Fae were consensually holding hands and Elise suddenly touched Fae's genitals, the factfinder could properly find that this sudden increase in the level of intimacy is unjustifiable in light of customary norms and expectations.

At the same time, it would not be appropriate to adhere blindly to custom in determining the contours of presumed consent. Customary standards and expectations might reflect misogyny or the views of a dominant or privileged group. The main point is that the justifiability of an actor engaging in conduct despite the absence of the other's actual consent is not simply a question of the actor's good faith belief that he or she is acting justifiably; rather, it depends on a social judgment that the conduct has legitimate value sufficient to outweigh the small risk that it will result in a nonconsensual invasion of the other's rights.

In two recent articles, scholars have carefully explored the concept of presumed or hypothetical consent. Kimberly Ferzan argues that conventions, context, and relationships

sometimes shift normative boundaries, creating a default rule that it is permissible to touch a person unless she dissents.⁵⁰ Many of her examples are similar to the five examples discussed above.⁵¹ Moreover, Ferzan agrees that the issue in such cases is often (to use criminal law terminology) *actus reus*, not *mens rea*. The question, in other words, is not whether the defendant reasonably believes that plaintiff actually consented, but whether the conduct of defendant should count as a nonconsensual invasion of plaintiff's interests in the first instance.⁵² I agree. Under the framework of the Intentional Torts Restatement and of this article, apparent consent and presumed consent are distinct categories.⁵³ Moreover, sometimes, by engaging in an activity such as dating, a person consents to a default normative position under which the other actor may engage in conduct (such as the actor suddenly holding one's hand) unless the person objects to the conduct. This is a plausible approach, and it is broad enough to encompass a range of default positions, based not only on conventions but also on the intrinsic value of relationships.⁵⁴ Below, I offer some justifications for the law sometimes taking this unusually permissive stance towards permissions.

In a second article, David Enoch argues that hypothetical consent (or hypothetical refusal to consent) has greater moral weight if it reveals a person's deep commitments or a person's second-order desires. Thus, if a Christian Scientist would, if conscious, refuse a life-saving blood transfusion for religious reasons, it is morally problematic to administer the blood transfusion in the parallel case where the Christian Scientist is unconscious. But if an anxious patient with a fear of needles would for that reason refuse a blood transfusion, it is much less morally problematic to administer the blood transfusion in the parallel case where the anxious patient is unconscious.⁵⁵

There is some force to Enoch's argument for a moral difference here, but I believe that that difference is insufficient to justify treating the blood transfusion as morally impermissible in

⁵⁰ Kimberly Kessler Ferzan, *Dissent-Sensitive Permissions*, 41 *Law & Phil.* 397 (2022).

⁵¹ Thus, her example "Date" (p. 398) is quite similar to "Holding Hands." Her other examples include: the Parisian mother of plaintiff's friend greeting plaintiff by kissing both her cheeks; comforting a good friend who suddenly receives terrible news by rubbing the friend's back; and a person in a long-term relationship coming home, sneaking up on her partner, and kissing the back of her partner's neck. *Id.* at 398.

⁵² To be more precise, Ferzan is noncommittal about whether these cases should count as instances of consent or instead as instances of dissent-sensitive permissions; but on either view, she believes that the plaintiff has not been wronged because the actor's conduct is consistent with the plaintiff's will. *Id.* at 399-400.

⁵³ Ferzan also correctly emphasizes that in many presumed consent cases, the plaintiff has consented to a "package deal." For example, plaintiff agrees to play tackle football, understanding the risks of injury. Even though plaintiff might well desire not to be tackled, he consents in the legal and moral sense because he could have opted out of playing the game in the first place. *Id.* at 403-404. (Ferzan adopts the idea of a "package deal" from my book chapter, *Exploring the Relationship*, *supra* note [].)

⁵⁴ See Ferzan, at [].

⁵⁵ Enoch, at 23-28. Enoch believes that the moral difference rests on a particular autonomy value—a concern with alienation. For the Christian Scientist, his religious commitments are central to his self-conception. For the anxious patient, his desire not to receive the blood is more superficial; indeed, it is a desire that he might wish to rid himself of.

the first case but not the second. I believe even more strongly that tort law should not recognize such a difference, at least if there is adequate proof in both cases that the unconscious patient had previously registered her or his wish not to permit a blood transfusion under the relevant circumstances. The legal right to define the permissible scope of physical touchings of one's body, including even medical treatment designed to save one's life, is and ought to be carefully safeguarded. Thus, if the medical provider knows that the anxious patient previously signed a consent form in which the patient clearly objects to a blood transfusion (but not for religious reasons) under all circumstances, tort law's emergency doctrine should not apply, and a doctor who ignores the patient's objection should be liable for battery.

b. The value of spontaneity and surprise

One especially important reason for recognizing the concept of presumed consent is the point that, in some contexts, spontaneity and surprise are essential to the value of an activity. An unduly rigid or narrow conception of legal consent would threaten that value. But at the same time, tort law should acknowledge that it is almost always wrongful for an actor to persist in an activity (a) if a participant actually objects or (b) if it is reasonably likely that the participant would object, if asked.

Tickle. A and B are close friends who usually hug when they greet each other.

One day, A suddenly approaches B from behind and briefly tickles B at the waist. B finds the touching very upsetting.

Unless A knows or should know that B would find this conduct objectionable, A should not be liable to B for offensive battery.

But notice that if A were to ask B immediately beforehand whether B minds being tickled, the pleasure that both might enjoy from A's conduct would be greatly diminished, if not eliminated. To be sure, A could have asked well in advance whether B has a general objection to being tickled. That would be the safer course, in recognition of the fact that many people do object to such a touching. And this more cautious approach would not jeopardize the ability of the parties to derive pleasure from a sudden tickle on a later occasion. But it is doubtful that such advance consent should always be required, on pain of tort liability if it turns out that the tickled person objects. In the example above, A acts permissibly in light of A's reasonable belief that a minor, brief tickle of a close friend would be welcomed, or at worst shrugged off with indifference or very mild annoyance. (Of course, if B responds to A's tickling by objecting "Stop," yet A persists, A should be liable for battery.⁵⁶)

⁵⁶ A should also be liable even if A believes that B's objection is insincere, at least if A's belief is unreasonable (for example, if B is no longer smiling or laughing and if B repeatedly expresses an objection). If A's belief is reasonable, taking into account both the potential benefits of continuing the activity and the potential risk that she is wrong about B only pretending to object, then A should not be liable.

If a person being tickled laughs in response, that should not be taken as conclusive evidence that the person actually consents to being tickled, just as the fact that a person coerced into sexual intercourse might experience sexual pleasure should not be taken to demonstrate that the person was not coerced.

In some cases, on the other hand, advance consent should, and probably would, be required.

Haunted house. D1 offers customers the opportunity to ride through a dark tunnel, during which scary creatures will appear to suddenly lurch toward the customer for the purpose of frightening them. Fully apprised of these features of the ride, C takes the ride. By the conclusion of the ride, C is quite upset by the experience.

D1 is not liable to C for what would otherwise constitute an assault (intentionally causing C to anticipate a harmful or offensive contact).⁵⁷

But now consider the following variation:

Concealed haunted house. D2 informs customers that the ride they are about to undertake will be a simulation of a quiet, bucolic trip down a lazy river, but actually the ride is identical to *Haunted house*.

Some customers might derive even greater pleasure from being frightened in this variation than in *Haunted house*, a ride that customers know in advance will be frightening. But many other customers will find the ride quite objectionable. The substantial risk that many customers will object and will be highly upset is very likely to, and should, result in tort liability for assault. Thus, advance consent (as in *Haunted house*) is necessary, even though this will deprive a small number of customers of the pleasure of experiencing sudden fright. Contrast *Tickle*, in which the risk that

See Westen [cite]. When a person experiences pleasure involuntarily as a result of another's conduct to which the person did not consent, the very fact that the person experienced a normally desirable pleasure in an involuntary context might justify treating that consequence as especially harmful or wrongful.

⁵⁷ Consider *Griffin v. The Haunted Hotel, Inc.*, 42 Cal.App.4th 490, 493, 509 (2015):

Scott Griffin purchased a ticket to experience The Haunted Trail, an outdoor haunted house type of attraction where actors jump out of dark spaces often inches away from patrons, holding prop knives, axes, chainsaws, or severed body parts. After passing what he believed was the exit and “giggling and laughing” with his friends about how much fun they had, Griffin unexpectedly was confronted by a final scare known as the “Carrie” effect —so named because, like the horror film *Carrie*, patrons are led to believe the attraction is over, only to be met by one more extreme fright. This was delivered by an actor wielding a gas powered chainsaw (the chain had been removed), who approached Griffin, frightened him, and gave chase when Griffin ran away. Griffin was injured when he fell while fleeing. Griffin sued ... alleging negligence and assault. ... The trial court granted Haunted Hotel's motion for summary judgment [because] Haunted Hotel did not breach any duty to Griffin.

We affirm. The risk that a patron will be frightened, run, and fall is inherent in the fundamental nature of a haunted house attraction like The Haunted Trail. Moreover, on this record there is no evidence creating a triable issue Haunted Hotel unreasonably increased the risk of injury beyond those inherent risks or acted recklessly. ... Being chased within the physical confines of The Haunted Trail by a chainsaw carrying maniac is a fundamental part and inherent risk of this amusement. Griffin voluntarily paid money to experience it.

the person tickled will object is much smaller and in which it is relatively easy for the person to promptly object and terminate the conduct before it causes significant distress.

This analysis suggests that quite extreme conduct might nevertheless be consensual if the participant gives advance consent that includes a provision for a contemporaneous objection permitting the participant to opt out. This is so even if the conduct involves a high level of surprise and a risk of physical and emotional harm.

Extreme haunted house. At Misery Manor,⁵⁸ customers pay to be kidnapped by the staff, then gagged, bound with rope, covered in tarantulas, roaches, and fake blood, force-fed, slapped, stomped on, locked in a coffin, and held under water. All of these conditions are fully described in a lengthy waiver that customers sign in advance. Customers are also provided with a safe word that permits their exit at any time. Alex survives the ordeal for an hour but then gives up by uttering the safe word. He suffers nightmares and loss of sleep for months.

This is the very rare case in which consent to conduct that otherwise would constitute intentional infliction of emotional distress would likely preclude tort liability. Normally, it is highly implausible that any person would genuinely consent to the outrageous, extreme conduct that that tort requires.

Similarly, if two individuals decide to engage in a form of BDSM or sadomasochistic conduct, sexual or otherwise, tort liability is inappropriate if the agreement provides sufficient notice of the behavior contemplated and if the parties specify a safe word exit option.⁵⁹

⁵⁸ The illustration is based on McKamey Manor, which has operated three such haunted house/ survival locations at different times. See:

<https://www.mckameymanor.com/>

https://en.wikipedia.org/wiki/McKamey_Manor

The following link about the Manor contains videos depicting the extreme conditions there. Readers beware: the videos are not for the faint of heart:

<https://www.theguardian.com/lifeandstyle/2015/oct/30/extreme-haunted-house-masochists-mckamey-manor>

According to one account, the operator in the past did not allow participants to use a safe word but later did allow this.

http://www.al.com/news/index.ssf/2017/08/mckamey_manor_extreme_haunted.html

A Hulu documentary, *Monster Inside*, was recently made about McKamey Manor:

<https://youtu.be/vYexezLbQDE>

⁵⁹ In *Lawson v. Rubin*, No. 17-cv-6404, 2018 WL 2012869, at *1 (E.D.N.Y. Apr. 29, 2018) (applying New York law), the court denied defendant's motion to dismiss battery claims arising out of BDSM sex between defendant and plaintiffs, models and escorts whom defendant hired. Plaintiffs signed nondisclosure agreements consenting to engage in "somasochistic activity" (without further specifics) but asserted that they did not agree to many specific and especially violent sexual acts, including defendant shocking them with a cattle prod. The court concluded that defendant could not show that plaintiffs consented to all of the sexual activity, emphasizing plaintiffs' claims that defendant continued to have sex with plaintiffs despite their pleading with him to stop. In *Doe v. Rector and Visitors of George Mason Univ.*, 149 F. Supp.

c. Presumed consent in relation to other consent categories

The discussion thus far reveals that different categories of consent differ in their scope, criteria, and legal or normative significance. At one end of a rough spectrum is actual consent, the gold standard: the plaintiff has the opportunity to give actual consent and is willing to permit the actor's conduct. This is followed by apparent consent: the actor reasonably believes that the plaintiff actually consents. (The five illustrations above beginning with *Tap on the Shoulder* are not instances of either actual or apparent consent, as we have seen.) Next on the spectrum are presumed consent and (as a prominent subcategory of presumed consent) the emergency doctrine. At the far end of the spectrum, according to some courts, is implied-in-law consent, in which the actor is not liable for invading the plaintiff's interests even if the plaintiff makes it clear to the actor that the plaintiff objects to the invasion.⁶⁰ (Consider *Crowded Bus*, discussed below.)

In the vast majority of cases when consent precludes liability for an intentional tort, the consent falls within the category of either actual consent or apparent consent. In a small number of cases—those in which the plaintiff is asleep, surprised, distracted, or otherwise unaware, prior to the actor's conduct, that the actor intends an otherwise tortious invasion of plaintiff's interests—the category of presumed consent may operate to preclude liability. But courts should be cautious about treating a case as falling within this subcategory, in order to assure that the actual preferences of the individual plaintiff are respected.

3d 602, 622 (E.D. Va. 2016), a student disciplinary case, a factual dispute arose about whether the use of an agreed-upon safe word was consistently respected. The court observed that “whether plaintiff committed sexual misconduct turns on Roe’s [plaintiff’s partner’s] consent, a complicated factual determination made all the more complex and nuanced by the unorthodox rules of plaintiff and Roe’s BDSM relationship.”

The Model Penal Code: Sexual Assault and Related Conduct, [Tentative Draft 6] (2022) recognizes an affirmative defense in § 213.10 for actors who use physical force, threats, or restraint, or who ignore expressions of unwillingness, in connection with an act of sexual penetration, oral sex or sexual contact. The actor must obtain the other's explicit prior permission for such conduct and must specify safe words or gestures that suffice to withdraw the permission.

Moreover, the affirmative defense is unavailable if the actor “recklessly engages in conduct that causes or risks serious bodily injury.” *Id.* § 213.10(3)(c). This type of paternalistic override of the consent defense is common within the criminal law, but it is not clear whether courts will insist upon a similar override in a tort lawsuit. I have found no tort case in which the court has clearly held that an adult who consented to conduct of an actor risking death or serious bodily injury was nevertheless permitted to obtain compensatory damages for the consequent injuries. (However, in *Lawson*, *supra*, the court states in dictum in a footnote: “The Court has considerable doubt whether there can ever be valid consent to many of the actions that plaintiffs allege.” 2018 WL 2012869, at *19, n. 19.) In the somewhat analogous situation in which individuals agree to fight one another, the criminal law punishes their conduct notwithstanding their consent, but most courts in tort cases conclude that the parties' consent operates to preclude a lawsuit for the resulting injuries.

⁶⁰ The five illustrations beginning with *Tap on the Shoulder* are not instances of implied-in-law consent because, if the plaintiff in those illustrations had objected to the actor's conduct in advance, the actor would be subject to liability for proceeding in the face of that objection.

V. Implied-in-law or constructive consent

The last potential category of consent is often called “implied-in-law” consent⁶¹ (and sometimes called “constructive” consent). Earlier drafts of the Restatement Third of Intentional Torts endorsed this category and attempted to formulate it in a black letter rule. But the version of the Restatement that the American Law Institute ultimately approved rejects the category, for compelling reasons, as we shall see.

In an earlier draft, implied-in-law consent was defined as follows:

Implied-in-Law Consent

An actor is not liable to another person for the actor’s otherwise tortious intentional conduct, even in the absence of [the person’s] actual or apparent consent, if:

(a) a reasonable person would actually consent to the actor’s conduct under the circumstances;

(b) the invasion of the person’s interests is de minimis; and

(c) the social benefits of engaging in the conduct without first securing the actual consent of persons affected by that conduct substantially outweigh the de minimis invasion.⁶²

⁶¹ The “implied in law” concept is employed in many different legal contexts. In contract law, for example, it describes a quasi-contractual remedy. See Restatement Second, Contracts § 4, Reporter’s Note to Comment *b* (Am. Law Inst. 1981) (“As opposed to the inferred from fact (‘implied in fact’) contract, the ‘implied in law’ quasi-contract is no contract at all, but a form of the remedy of restitution.”); Williston on Contracts §1:6 (West 2016) (“There are two kinds of implied contracts, one implied in fact and the other implied in law: the first does not exist unless the parties manifest assent, by reason of words or conduct, while the second is quasi or constructive, and does not require mutual assent but is imposed by a fiction of the law, to enable justice to be accomplished, even when no contract was intended by the parties.”).

Many states have so-called “implied consent” statutes that empower a state agency to revoke a person’s driver’s license if the person does not take a chemical sobriety test. See, e.g. *Stevens v. Commissioner of Public Safety*, 850 N.W. 2d 717 (Ct. App. Minn. 2014). Such a statutory requirement is sometimes justified by the argument that the driver “consents” to have her license revoked if she chooses not to take the test. This use of “implied consent” is largely fictional: the driver does choose to drive and might be aware of this government-imposed condition, but the driver does not necessarily willingly accept this condition on driving.

⁶² Restatement Third of Torts, Intentional Torts to Persons: Preliminary Draft 5, § 18 (2018).

This category of consent would have applied in a relatively small number of cases. It would have included conduct that causes socially justifiable minor physical contacts, such as brushing against pedestrians in order to pass them on a very crowded street; brushing against bus or subway passengers in crowded conditions in order to enter or exit or to allow room for more passengers; gently pushing against others while squeezing into or exiting a crowded elevator; or physically contacting other people in the process of evacuating a building quickly during a fire alarm.

Cases within this category often can also be analyzed as instances of actual, apparent or presumed consent. If A steps into a public bus and bumps into passenger B while moving to the back of the bus, A can ordinarily rely on the actual, apparent, or presumed consent of B to these minor and expected contacts. Bus passengers usually consent to this slight infringement of their right of bodily autonomy in order to obtain the benefits of convenient and affordable public transportation. However, actual, apparent, and presumed consent are not always sufficient to explain nonliability in these types of cases.

Crowded bus with objecting passenger. Tony enters a crowded bus and loudly shouts, “Keep your distance! Do not touch me!” The bus driver announces: “Please move to the back of the bus, to make room for other passengers.” Ben, despite hearing Tony’s statement, squeezes past Tony toward the back of the bus, brushing against Tony. Surprisingly, the slight brush causes Tony to lose his balance and fall, and he is injured. Ben is not liable to Tony for battery.⁶³

The final version of the Restatement Third of Intentional Torts, which the ALI has approved, takes a different tack: it rejects the category of implied-in-law consent and instead recognizes a narrowly circumscribed nonliability rule for minor physical contacts that are clearly socially justifiable, in cases such as *Crowded bus*. Under this rule, such contacts are insufficient for battery liability.⁶⁴ Only a small handful of cases will be affected by this special rule of nonliability, because other tort law doctrines (e.g., requirements of offensiveness or lack of consent) will usually preclude liability in cases similar to *Crowded bus* (such as a tap on the shoulder to gain a person’s attention). In typical cases that this rule excludes from liability, requiring the actor to avoid a physical contact in order to accommodate the unusually sensitive preferences of a small number of participants would be infeasible or would significantly interfere with the purposes of the activity; moreover, permitting tort liability for such contacts might jeopardize the social benefits of the activity.⁶⁵

⁶³ See R3IT § 1, Illus. 7.

⁶⁴ See R3IT § 1, comment h (“No liability for minor contacts that are clearly socially justifiable”).

⁶⁵ One explanation for declining to impose liability in such cases is Dean William Prosser’s famous statement:

[I]n a crowded world, a certain amount of personal contact is inevitable, and must be accepted. Consent is assumed to all those ordinary contacts which are customary and reasonably necessary to the common intercourse of life, such as a tap on the shoulder to attract attention, a friendly

Some courts might conclude that a person such as plaintiff Tony in *Crowded bus* “impliedly” consents to a contact. However, this conclusion relies upon a contrived and largely fictional sense of consent, insofar as Tony has expressly communicated his objection to being touched. Furthermore, this “implied in law” consent approach creates a significant danger: it is a roving invitation for a court or trier of fact to reject liability, even when a plaintiff has explicitly refused consent, whenever the court or jury believes that the plaintiff’s interests or social interests warrant a rule of nonliability. Beyond making the dubious assertion that an objecting plaintiff nevertheless “impliedly” consents to what he or she objects to, courts have said little about the content or the scope of this constructive or fictitious variety of consent. By contrast, the criterion of contacts that are clearly socially justifiable is much more limited in scope.

The implied-in-law consent doctrine sits uneasily among the other consent categories. A doctrine that precludes liability even when the person clearly voices an objection to the actor’s conduct embodies a highly attenuated sense of consent, at best.⁶⁶ Moreover, it is difficult to explain why a similar supposedly consensual rationale does not exist in every case in which a

grasp of the arm, or a casual jostling to make a passage. ... Although where there is any doubt at all the plaintiff’s expressed wishes may very well turn the scale as to what is reasonable, it may be questioned whether any individual can be permitted, by his own fiat, to erect a glass cage around himself, and to announce that all physical contact with his person is at the expense of liability.

Prosser, *Handbook of Torts* 37 (4th ed. 1971) (footnotes omitted). Many judicial opinions quote the Prosser excerpt. See R3IT § 1, Comment h, Reporters’ Note.

⁶⁶ The weak consensual rationale is along the following lines: a bus passenger chooses to employ public transit rather than another mode of transportation, and it is not unfair to ask the passenger to surrender a minor degree of personal autonomy in exchange for the benefit he or she receives. Moreover, most bus passengers either actually consent or can at least be presumed to consent to this tradeoff: most will treat the risk of a tortious invasion as an acceptable burden to incur in exchange for the benefit. Thus, some judges and scholars might find it appropriate to employ the category implied-in-law “consent,” rather than the legal category of “privilege” that applies to self-defense or defense of property, to explain nonliability in this set of cases.

The “limited duty” doctrines that many American courts now recognize for athletic and recreational activities have a similar rationale. For example, most spectators at a baseball game prefer that seats in the bleachers and far from home plate not be protected by a screen, notwithstanding some risk of injury, because of such benefits as a better view of the field and the opportunity to catch a baseball.

Hershovitz offers a criticism of this rationale in his discussion of Arthur Ripstein’s approach to consent in Ripstein’s recent book, *Private Wrongs*:

Ripstein could, I suppose, insist that anyone who appears in public consents to the sorts of touchings that are customary in public. Courts sometimes suggest as much. ... To take that view, we’d have to ignore the fact that some people are homeless and do not appear in public by choice, as well as the fact that life as a hermit is not an option, even for most people who have homes. But even if we set all that aside, the insistence that anyone who appears in public consents to customary touchings is an empty slogan, as consent plays no role in determining which touchings are permissible; custom does all the work.

Hershovitz, at 951, n. 24.

person chooses to engage in an activity, aware of the risks of that activity. A woman who wears a low-cut dress certainly does not thereby consent to the risk of unwanted sexual contact, even if her behavior increases the risk of such conduct. A Bostonian who chooses to drive, aware of the highly dangerous driving habits of many Boston drivers, does not thereby consent to the (unusually high!) risk of injury from the negligent or reckless conduct of other drivers. In both cases, although the person undoubtedly prefers (a) engaging in the relevant conduct notwithstanding the risks to (b) not engaging in the conduct (not wearing the dress, not driving), that preference hardly suffices to show that the person legally consents to the risks that she or he foresees.⁶⁷

Of course, privileges such as self-defense, defense of property, the privilege to detain or arrest, and necessity do override the right of a person to deny consent to the conduct that is thus privileged. But these privileges are narrowly defined. They do not apply in all intentional tort cases. Unlike a very broad “implied-in-law” consent privilege, the collection of individual privileges does not threaten to undermine the core consent categories. The narrow nonliability rule for minor physical contacts similarly does not undermine these categories.

VI. Consent to sexual conduct

Consider how the categories of consent discussed above would apply to an issue of contemporary controversy, consent to sexual conduct, and especially sexual intercourse. Some applications of these categories are quite straightforward. Actual consent can be legally effective even if it is reluctant.⁶⁸ Apparent consent can preclude liability even in the absence of actual consent.⁶⁹ And presumed consent can sometimes preclude liability, as in “Holding Hands,” above.

⁶⁷ On the other hand, a partial answer to this objection is that most similarly situated individuals are *not* willing to accept the additional risk of harm or of rights-violation that accompanies the choice: they justifiably view those risks as a price they should *not* have to pay simply because they have chosen to dress in a particular manner or to get behind the wheel in Boston. In this respect, they are quite different from most bus passengers.

⁶⁸ See R3IT § 19, Illus. 2:

Breakup. Chahna and Dermott have had a romantic and sexual relationship for several months, but they have not had sexual intercourse. In an unthreatening manner, Dermott tells Chahna that Dermott is frustrated by their lack of greater sexual intimacy and that Dermott will end the relationship unless they sleep together soon. Chahna prefers not to have intercourse with Dermott until they have decided to marry, and neither Chahna nor Dermott is ready to make that commitment. Nevertheless, Chahna reluctantly agrees to intercourse with Dermott. ... Dermott is not liable to Chahna for battery.

⁶⁹ See R3IT § 19, Illus. 12:

Inward objection. Aldo and Benecio are on a first date. Aldo asks, “Is it okay if I kiss you?” Although Benecio is unwilling, Benecio smiles and does not express unwillingness by words or

But there are further, more difficult questions to consider, questions that are vital to address in light of the potential breadth of the doctrines of apparent and presumed consent. First, if willingness to permit the conduct of another is the standard for actual consent, is that not in tension with two widely-discussed and increasingly prevalent norms about the proper scope of consent—“NO means NO” and “Only YES means YES”? Second, if an actor initiates sexual conduct despite the other person’s failure to express consent, does the actor have a valid argument that the value of spontaneity and surprise might justify the actor’s conduct? Third, does the view that actual consent need not be communicated to the actor have the problematic implication that victims of violent or apparently unwelcome sexual assault will too frequently lose the right to sue for battery? The concern here is that the actor might escape liability by simply asserting that the other person was actually willing to permit the sexual intercourse, notwithstanding her verbal or physical resistance. Fourth, is an actor always entitled to proceed with sexual conduct just because the other person expressed actual consent? Even if the actor knows that the other person’s expression of consent was insincere?

a. Actual consent, NO means NO, and Only YES means YES

Turning to the first question, it would seem, at first glance, that these norms could be implemented within the category of apparent consent. Consider the view that “NO means NO.” This is generally understood as justifying criminal liability, tort liability, or student disciplinary sanctions when an actor persists in initiating sexual intercourse despite the actor’s partner expressing objection to that conduct by words or conduct. Although the criminal law of rape has traditionally required force in addition to nonconsent, many jurisdictions now impose criminal liability on an actor who engages in intercourse without the consent of the other person, even if the actor does not employ or threaten additional force, and they sometimes specify that an affirmatively expressed “No” or “Stop” or “Don’t” suffices to register such nonconsent.

Consider an example:

NO means NO. Kai and Leila are on a first date. After consensually kissing, Kai and Leila disrobe. Kai asks Leila if Leila is willing to engage in sexual intercourse. Leila firmly says “no.” Kai replies, “I know you really want to,” and initiates intercourse, with the result that Kai and Leila engage in intercourse. Leila remains passive throughout the encounter.⁷⁰

A court is likely to conclude that Leila does not apparently consent, because a reasonable person in Kai’s position would recognize that Leila does not actually consent. Assuming that Leila also

conduct. Aldo kisses Benecio. Because of apparent consent, Aldo is not liable to Benecio for battery.

⁷⁰ R3IT § 19, Illus. 14.

does not actually consent, Kai should be liable to Leila for battery.⁷¹ Social norms about the permissible bounds of sexual behavior have evolved, and the meaning of a “reasonable” belief that the plaintiff was willing for a type of sexual conduct to occur must adapt to those norms. It is now widely recognized that a person’s actual consent to a modest degree of sexual intimacy, such as a kiss, does not entail their consent to a much greater degree of intimacy, such as sexual intercourse. It is also widely accepted that if plaintiff expresses his or her objection to any sexual act, the actor must not proceed to engage in that act. As a matter of law, an actor who proceeds in the face of such an objection cannot rely upon the plaintiff’s apparent consent, especially if the actor engages not just in a minor sexual touching but in sexual intercourse.

Similarly—and again on first glance—it might seem that the apparent consent category can readily incorporate the principle that “Only YES means YES”—i.e., that a person does not give legally effective consent to sexual intercourse unless the person expresses to the actor their willingness to engage in intercourse (either by words or conduct), even if the person has given legally effective consent to lesser sexual intimacy during the same encounter with the actor. This principle gives protection to potential victims who express neither willingness nor unwillingness to engage in sexual intercourse. Those who support the standard believe it appropriately requires actors who initiate sexual intercourse to be quite certain that the other is willing to proceed, in light of the potentially devastating emotional and physical consequences that an unwilling victim might suffer.⁷² Consider another example:

Only YES means YES. Quinn and Peyton are on a first date. After consensually kissing, Quinn and Peyton disrobe. Quinn asks Peyton if Peyton is willing to engage in sexual intercourse. Although Peyton is unwilling, Peyton says nothing and does not express unwillingness by words or conduct. Quinn takes the initiative and Peyton is passive, with the result that Quinn and Peyton engage in intercourse.⁷³

If a jurisdiction concludes that a reasonable person in Q’s position should not treat P’s conduct as consensual unless P has affirmatively expressed willingness, then as a matter of law, Q may not rely on apparent consent, and it then seems to follow that Q must be liable to P for battery.

However, this first glance view is not sufficient to fully implement these two norms. For suppose a jurisdiction adopts the rule of law that “NO means NO” for purposes of whether the actor reasonably believes that the person is consenting. The actor might nevertheless argue that

⁷¹ Many reported tort cases support the principle that “NO means NO” but no tort cases have been found that address whether “Only YES means YES” is the standard for consent to sexual intercourse. See *id.*, § 19, Comment I, Reporters’ Note.

⁷² The Model Penal Code: Sexual Assault project initially proposed an affirmative consent standard, but the proposal was rejected by the membership of the ALI because of concerns about overcriminalization, the arguably modest culpability of the conduct in light of prevailing social norms, the difficulty of articulating the standard precisely, and the likelihood that severe collateral consequences would follow from treating defendants in such cases as sex offenders. However, tort liability does not raise these same concerns or does not raise them to the same extent as criminal liability.

⁷³ R3IT § 19, Illus. 15.

the person who clearly said “NO” was insincere and genuinely was willing to engage in sexual intercourse.⁷⁴ Although the actor cannot rely on apparent consent, the actor might argue in the alternative that the person actually consented. Similarly, in a jurisdiction adopting the rule that “Only YES means YES,” the actor might argue that the person who did not communicate “YES” was willing that the sexual intercourse take place. Put differently, even if we conclude that the actor was unreasonable in believing that the person actually consented, it might turn out that the person actually did consent. Indeed, even if the actor is highly culpable, initiating sex despite believing that the person did not actually consent, it might turn out that the person did actually consent.⁷⁵

Accordingly, if a jurisdiction wishes fully to implement these bright-line rules, it must modify the definition of actual as well as apparent and presumed consent, and it must treat the norms as constitutive of what these three categories of consent mean in this particular context. Thus, in order to assure that the view “NO means NO” is suitably implemented for actual as well as apparent consent, it is necessary to change the definition of actual consent to reflect this view. The final version of the Restatement Third, which endorses the “NO means NO” view, adopts this approach in § 19(d):

If a person, by words or conduct, communicates to an actor the person’s unwillingness to engage in any sexual act or a specific sexual act, yet the actor causes the person to submit to or perform the act, the person has not consented to the act, and the actor is subject to liability for the applicable intentional tort (battery, assault, false imprisonment, or intentional infliction of emotional distress).⁷⁶

⁷⁴ See also Ripstein, *Equality, Responsibility, and the Law*, at 214 (“If you suppose my sincere invitation to be sarcastic and enter my home anyway, you commit no trespass, for I have consented.”).

⁷⁵ An actual example is *People v. Bink*, 444 N.Y.S.2d 237 (N.Y. App. Div. 1981), discussed by Ferzan and Westen, *supra*, at [cite]. The complainant informed jail authorities that Bink had forced him to perform oral sex on Bink by threats of a beating and of rape. The authorities agreed with complainant’s suggestion to catch Bink in the same act in a sting operation. The complainant thus pretended to be coerced by Bink into the sexual act, while the authorities secretly observed the act. But the complainant was not actually afraid of Bink’s threats prior to or during the act. The court held that forcible compulsion was not established for purposes of the criminal law because the complainant consented.

Note, however, that Bink could have been prosecuted for the crime of *attempted* forcible compulsion, because Bink believed that the complainant did not consent. By contrast, tort law does not recognize a tort of *attempted* battery. Thus, Bink would probably not be liable in tort for the later sexual act.

⁷⁶ R3IT § 19(d). See also Model Penal Code: Sexual Assault, [Tent. Draft No. 6] (2022), § 213.0(2)(e)(iv):

Consent may be revoked or withdrawn any time before or during the act of sexual penetration, oral sex, or sexual contact. A clear verbal refusal—such as “No,” “Stop,” or “Don’t”—establishes the lack of consent or the revocation or withdrawal of previous consent.

A similar change in the definition of consent would crystallize the norm that “only YES means YES.”⁷⁷

b. Spontaneity and surprise

Whether these bright-line rules should be adopted is a controversial question.⁷⁸ And that brings us to the second issue in this Section. Spontaneity and surprise can enrich the value of certain activities, as we have seen, and moral and legal conceptions of consent should not be so rigidly applied that these benefits can never be obtained. One earlier example, *Holding hands*, implicitly recognized this point in the context of presumed consent: if an actor engages in a spontaneous romantic gesture that is a relatively minor increase in physical or sexual intimacy, and the actor has no reason to believe that the other would object, then tort liability is unwarranted. Similarly, if an actor surprises her or his partner with a new form of sexual intimacy

However, the “NO means NO” bright line rule is not always easy to articulate and apply, and it arguably requires some qualification. The final version of the Restatement Third of Intentional Torts to Persons endorses the following qualification of the rule:

Sometimes it might be unclear whether the person is indeed sincerely communicating unwillingness. The relevant inquiry is then whether a reasonable person in the actor's factual circumstances would recognize that the person has expressed unwillingness. If the answer to that fact-intensive question is no, then the actor may rely on apparent consent and is not liable. If the answer is yes, then a finding of apparent (or presumed) consent is precluded. Thus, it is not sufficient that the actor subjectively (but unreasonably) believes that the person has expressed willingness. When engaging in sexually intimate conduct, a reasonable person would treat the other person's expression of unwillingness as sincere and would not unilaterally initiate sexual contact without taking reasonable steps to ensure that the person was indeed willing.

For an example in which a reasonable-person test is appropriately employed, suppose the following significant variation from the facts of Illustration 14: in response to Kai's question whether they should engage in intercourse, Leila says, while smiling, “I'm not so sure,” and immediately hands Kai a condom and moves into position for intercourse. On these specific facts, the factfinder might plausibly conclude, from Leila's words and conduct, that a reasonable person in Kai's circumstances would believe that Leila has not expressed unwillingness. If such a conclusion is reached, Kai may rely upon apparent consent and is not liable.

R3IT § 19, Comment k.

⁷⁷ For example, the jurisdiction might endorse the following standard:

If an actor engages in a sexual act ... with a person, even though the person has not, by words or conduct, communicated to the actor the person's willingness to engage in that act, the person has not consented to the act, and the actor is subject to liability for the applicable intentional tort.

See R3IT § 19, Reporters' Note, Comment l.

⁷⁸ For a useful overview, see Aya Gruber, *Consent Confusion*, 38 Cardozo L. Rev. 415 (2016).

in the course of a long-standing consensual sexual relationship, the actor's conduct will often satisfy the criteria of presumed consent.

On the other hand, the value of spontaneity to both parties should be balanced against the risk that the surprised person would not actually consent to the conduct, if asked. And the latter risk is especially worrisome in the context of sexual conduct. Specifically, that risk should be accorded much heavier weight when the conduct involves an escalation of intimacy from sexual touching to sexual intercourse or sexual penetration, because the harm to the victim if the conduct is nonconsensual is then extremely grave. Of course, the very point of the "NO means NO" and "Only YES means YES" standards is to provide a categorical rule that strongly protects against that risk.

c. Actual willingness without communication of willingness, revisited

Third, does the view, defended earlier, that actual consent need not be communicated to the actor have the troublesome implication that victims of apparently unwelcome sexual assaults (including those involving significant violence) will frequently lose the right to sue for battery, based simply on the actor's claim that the other person was actually willing to permit the conduct, notwithstanding her or his verbal and physical resistance?

The short answer is no. If an actor suddenly and aggressively escalates the level of sexual intimacy from a kiss to intercourse while the plaintiff verbally or physically resists, a jury is exceedingly unlikely to conclude that the plaintiff actually consented. Moreover, to address this problem, a jurisdiction might adopt one or both of the per se rules discussed above: if an actor initiates sexual conduct (a) despite the partner's expression of "NO" or (b) when the partner has not expressed "YES," the conduct is nonconsensual as a matter of law. Such a jurisdiction will have no difficulty imposing liability in these scenarios.

The longer answer, however, is "maybe yes," in jurisdictions that do not choose to adopt such per se rules. In light of the widespread use of text messaging and email today, it is no longer unrealistic that a factfinder might sometimes conclude that a plaintiff who physically or verbally resists an aggressive actor was actually willing to permit the conduct. Suppose, for example, a variation of the "NO means NO" illustration above: although Leila said "NO" when Kai asked if she was willing to engage in intercourse, Leila sent numerous texts to friends immediately before and after the encounter expressing desire or willingness to have intercourse, and suppose Leila continued dating Kai.

Some will view the possibility that actors might escape tort liability in such cases as problematic, because if actual consent is defined in this subjective manner, normal tort procedural rules (which usually place the burden of production and persuasion on plaintiff with respect to plaintiff's absence of consent) might permit too many erroneous findings of actual consent. Others will argue that, in a clear enough case of this sort, the plaintiff should indeed be found to have actually consented. A feasible, and perhaps sensible, response to these competing concerns is to shift the burden of production and even of persuasion to the actor on the issue of

actual consent in certain cases—for example, in sexual intercourse cases in which the actor employs force or in which the plaintiff, by words or conduct, expresses unwillingness to the actor.

d. Communication of willingness without actual willingness, revisited

Consider, once again, the converse case. Suppose a plaintiff communicates willingness but the actor knows that the communication is insincere and that the plaintiff is actually *not* willing to permit the contemplated conduct. The following example is analogous to the earlier example, *Teller's punch in the stomach*:

YES does not mean YES. Sam and Pam are on a first date. After consensually kissing, Sam and Pam disrobe. In an unthreatening manner, Sam asks Pam if she is willing to engage in sexual intercourse. Pam says "Sure! I'll be back in a minute." While Pam is in the bathroom, Sam sees that Pam has accidentally dropped her cellphone on the floor. Picking up the phone, Sam reads a text by Pam to several friends, which states, "I just told Sam that I was OK with having sex, but I really wish I hadn't. I don't have the courage to tell Sam my true feelings. I sure hope Sam changes his mind!"

In this case, the expressive or communicative conception of consent clearly seems inadequate. Once Sam becomes aware that Pam's expression of willingness was, or might have been, insincere, Sam should investigate further and ensure that Pam is genuinely willing to engage in intercourse. The subjective conception of consent can readily explain this result; the expressive conception cannot.

On the other hand, a purely subjective conception of consent does create a significant risk that too many actors will fail to treat a partner's expressions of *unwillingness* seriously (as the discussion in the prior section explained). One solution would be to adopt the bright line rule that "NO means NO" but accompany it with a fact-sensitive, contextual standard when the non-initiating sexual partner expresses "Yes," as in the prior example.

e. Evaluating the Restatement Third's position

The final version of the Restatement Third of Intentional Torts includes a new provision, § 19, addressing consent to sexual conduct. Previous Restatements did not have a separate provision discussing this increasingly important topic.

The Restatement endorses "NO means NO" but takes no official position on affirmative consent or "Only YES means YES," in light of the dearth of case law and uncertainty about how most courts would resolve the affirmative consent issue. After reciting arguments in favor of and against affirmative consent, Comment I sets forth the illustration involving Quinn and Peyton reproduced above, and then states:

Whether Quinn is justified in relying on apparent consent depends on the jurisdiction's norms with respect to consent to sexual intercourse. If a court chooses to adopt affirmative consent as the relevant standard in sexual-battery cases, then, as a matter of law, Quinn may not rely on apparent or presumed consent, and Quinn is subject to liability

to Peyton for battery. If the court chooses not to adopt affirmative consent as the standard, then the question whether actual, apparent, or presumed consent is satisfied in these circumstances remains, in the first instance, a question for the jury to decide.⁷⁹

Torts scholar Martha Chamallas has offered powerful arguments in favor of recognizing the affirmative consent standard in tort law.⁸⁰ But the Reporters for the Restatement Third replied that courts have not clearly endorsed the affirmative consent standard and that the proper scope of an affirmative consent standard remains a difficult issue.⁸¹ For example, a broad reading of that standard would impose tort liability in the Holding Hands example, above, a result that is problematic.

This article does not fully analyze the arguments relevant to this debate, but I believe that the framework suggested here helps to identify some of the most relevant considerations. Consider that example again, in which the actor held another's hand in a romantic gesture, and assume that the recipient of the gesture did not actually consent. Under this article's framework, a bright-line rule of affirmative consent should not impose liability in this case if either (a) apparent consent or (b) presumed consent exists. Thus, tort liability would be inappropriate if either of the following is true:

(a) a reasonable person in the actor's situation would believe that the recipient was willing to permit the conduct;

(b) prevailing social norms justify the actor in making this gesture, and the actor has no reason to believe that the recipient would not have actually consented to the conduct if asked.

What a reasonable person would believe, and what prevailing norms justify, are issues with both descriptive and normative dimensions, which will undoubtedly change over time. Common law courts and juries are, I believe, well qualified to resolve such issues.

VII. Conclusion

The "new framework" noted in the title of this article is not radically new. Courts have frequently employed the categories of actual consent and apparent consent, as well as the emergency exception or doctrine, which is a subcategory of presumed or hypothetical consent. But neither courts nor commentators have appreciated the significance of the latter broader category. And courts have frequently employed the vague and unhelpful idea of "implied" consent, and have sometimes referred to constructive or implied-in-law consent, which is also a problematic category. Thus, fully adopting the approach of this article and of the Restatement Third of Intentional Torts would be a genuine innovation.

In cataloguing the distinct types of consent that preclude liability for intentional torts, I have tried to bring some clarity to doctrinal and moral issues that are too often blurred by fog. It

⁷⁹ R3IT § 18, illus. 15.

⁸⁰ See Chamallas, *supra*, The Elephant in the Room; Chamallas, *supra*, Will Tort Law Have Its #Me Too Moment?

⁸¹ See Simons & Cardi, *supra*, Restating the Intentional Torts to Persons.

is not enough to notice that consent usually involves one person communicating willingness to another, if we do not resolve whether such a communication is a necessary condition of effective consent. It is not enough to declare that a person has “impliedly” consented to another’s conduct, if we do not identify the more specific category of consent that is doing the legal or moral work. But it is also not enough to differentiate categories, if we do not adequately justify the criteria, content, and scope of each category. This article identifies categories that I believe are necessary, sufficient, and useful. And it offers justifications that I believe are plausible. These are valuable steps, but they are only steps, in the formidable project of understanding consent, a fundamental and potent principle of law and morality.